

THE
LIFE, TRIAL,
CONFESSION AND EXECUTION
OF
ALBERT W. HICKS,
THE PIRATE AND MURDERER,
EXECUTED ON BEDLOE'S ISLAND,
NEW YORK BAY,

ON THE 13TH OF JULY, 1860,

FOR THE MURDER OF CAPT. BURR, SMITH AND OLIVER WATTS,
ON BOARD THE OYSTER SLOOP E. A. JOHNSON.

CONTAINING THE HISTORY OF HIS LIFE (WRITTEN BY HIMSELF)
FROM CHILDHOOD UP TO THE TIME OF HIS ARREST.

WITH A FULL ACCOUNT OF HIS PIRACIES, MURDERS, MUTINIES,
HIGH-WAY ROBBERIES, ETC., COMPRISING THE
PARTICULARS OF NEARLY

ONE HUNDRED MURDERS!

TO WHICH IS ADDED

THE ACCOUNT OF HIS ARREST, IMPRISONMENT, TRIAL AND EXECUTION.

ALSO, HIS PHRENOLOGICAL CHARACTER,
AS DESCRIBED BY L. N. FOWLER.

OFFICE U. S. MARSHAL, }
Southern District of New York. }

I hereby certify that the within Confession of ALBERT W. HICKS was made by him to me, and
that it is the only confession made by him.

LORENZO DE ANGELIS, *Dep. U. S. Marshal.*

NEW YORK:
ROBERT M. DE WITT, PUBLISHER,
13 FRANKFORT STREET

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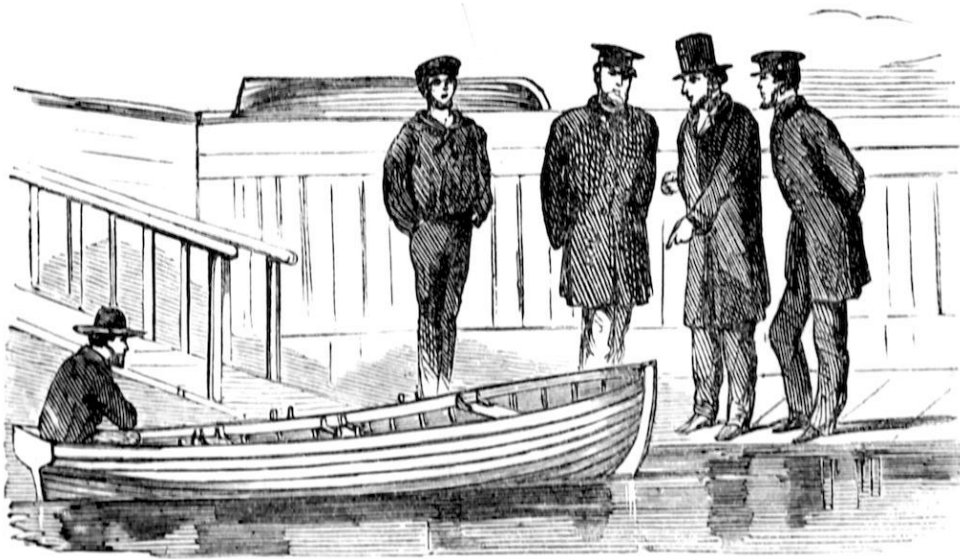
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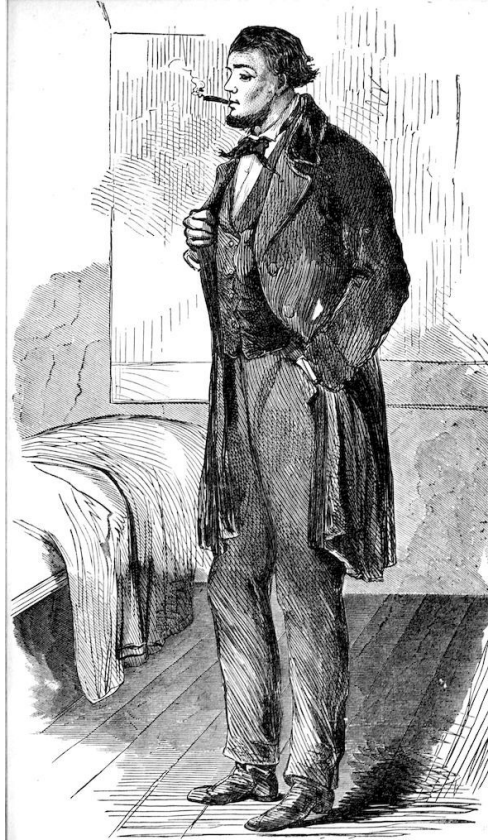
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PORTRAIT OF THE WIFE OF HICKS.



THE BOAT IN WHICH HICKS ESCAPED FROM THE OYSTER SLOOP.



PORTRAIT OF ALBERT W. HICKS,
THE PIRATE.

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Entered according to Act of Congress, in the year 1860, by

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THE TRIAL

OF

ALBERT W. HICKS,

FOR PIRACY

ON BOARD THE SLOOP

EDWIN A. JOHNSON.

UNITED STATES CIRCUIT COURT.

Before HON. JUDGE SMALLEY.

HISTORY OF THE CASE.

On Thursday, March 16th, the sloop “E. A. Johnson,” sailed from the foot of Spring street, New York, for Deep Creek, Va., for a cargo of oysters.

The same sloop was ashore near Tottenville, S. I. on Friday, getting scrubbed, and having some carpenter work done. There she laid till Sunday morning, when she floated off, and proceeded down the Bay.

Again, she arrived in Gravesend Bay on Sunday afternoon, and remained there waiting for a fair wind until Tuesday at sunset, when she set out to sea, Captain Burr, a man by the name of Wm. Johnson, and two boys, named Smith and Oliver Watts, being on board.

The next morning, Wednesday the 22d of March, the sloop was picked up by the schooner “Telegraph” of New London, in the lower bay, between the West Bank and the Romer Shoals. On being boarded, she was found to have been abandoned, as also to bear the most unmistakable evidences of foul play having taken place at some time, not remote. It was also evident that a collision had taken place with some other vessel, as her bowsprit had been carried away, and was then floating alongside, attached to her by the stays. Upon further examination, her deck appeared to have been washed with human blood, and her cabin bore dire marks of a desperate struggle for life. The Telegraph made fast to her, and started for the city, but was failing in the effort (as both vessels were fast drifting ashore), when the towboat Ceres, Captain Stevens, being in the neighborhood, took them in tow, and brought them both up to the city, when they were moored in the Fulton Market slip.

The story of bloody traces was at once communicated to the Police Authorities, and soon it spread throughout the city that a terrible massacre had taken place. Speculation accused river pirates of the crime, but there was a doubt on the public mind. Throughout Wednesday, the circumstances

connected with the case were canvassed thoroughly, but no new light could be obtained as to the mystery. The daily press served up the story to the public on Thursday morning. Scarcely had the papers been issued when two men, named John Burke and Andrew Kelly, residents of a low tenement house, No. 129 Cedar street, called at second ward station-house, and gave such information as led the officers to the conclusion that one of the hands who had sailed on board the sloop "Johnson" from the foot of Spring street, was implicated in the mysterious transaction. They said that a man, named Johnson, who had lived in the same house with them, had come home suddenly and unexpectedly the previous day, having with him an unusual amount of money, which he said he had received as prize money for picking up a sloop in the lower bay. They gave the man's description, told which way he had gone with his wife and child. Immediately Officer Nevins and Captain Smith started on their way toward Providence, to which city they had reason to believe Johnson had gone.

Meantime, other facts came to light in connection with the mystery. The ill-fated sloop had run into the schooner "John B. Mathew," Captain Nickerson, early on Wednesday morning, at which time only one man was seen on board, and this man was subsequently observed to lower the boat from the stern, and leave the sloop. This collision took place just off Staten Island, and was so severe as to render the "John B. Mathew" unfit for sea. Hence, she returned to the city for repairs.

On the same afternoon that the officers started after Johnson, officers Burdett and James, accompanied by our reporter, set out in search of the yawl belonging to the sloop, which was said to be adrift off Staten Island. This they succeeded in finding, and bringing to the city, after a tedious passage on a rough sea with a cold wind. The boat contained two oars, a right boot, a tiller, and part of an old broom. George Neidlinger, the hostler at Fort Richmond, south of which the boat was found, said that shortly before six o'clock the previous morning, he had seen a man land from the boat, whom he described in such a manner as to show that Johnson might be the individual.

It was next ascertained that a man answering the same description had made himself conspicuous at the Vanderbilt landing, where he had indulged freely in oysters, hot gins, and eggs. He was seen on the seven o'clock boat coming up to New York, by a deck hand, who had, by his own solicitation,

counted a portion of his money, which he carried in two small bags, like shot-bags. Here the matter rested for a short time, while the people were waiting for news from the officers at Providence. It was during this interval that our artist succeeded in procuring the sketches herewith presented.

Meantime the sloop lying at the Fulton Market Slip was attended, day after day, by multitudes of the curious and the excited. The story of blood was the topic of conversation, and the spirit of revenge found a limited relief in verbal expressions of bitter desire for the punishment of the perpetrator, if he should be arrested.

Mr. Selah Howell, of Islip, L. I., part owner of the sloop, was on hand. He suspected William Johnson, the man who took supper with Captain Burr and himself in the cabin, on the evening before the sloop left the city. The theory that the murder had been committed by one of the crew favored this suspicion, and the idea floated from ear to ear until it became a settled conclusion in every mind. Mr. Howell viewed the boat, and identified it as belonging to the sloop.

The carman, who conveyed Johnson's baggage to the Fall River steamboat, also described the man who had employed him, and the woman who was with him.

During Friday, Captain Weed and Mr. Howell searched the cabin of the sloop, and found in the captain's berth a clean linen coat and a clean shirt, both neatly folded up, and each of them cut through the folds as if with a sharp knife. The coat had a sharp, clean cut, about seven inches long, through every fold; the shirt had some shorter cuts in it. They ascertained that an auger, which lay on the cabin floor, had been used to bore two holes immediately behind the stove, for the purpose of letting off the blood, which constituted a little sea. Instead of running off, it collected in the run beneath, where it remains. In brief, the cabin, the deck, and the starboard side of the vessel bore the most unmistakable evidences of a tremendous crime having been committed on board, and committed with the utmost regard to a previously arranged plan in the mind of the murderer, for three persons had been dispatched, two on deck and one in the cabin.

Public excitement continued on the increase; the public were waiting with all anxiety for a report from the pursuing officers, when, on Friday night, at a late hour, a dispatch was received from Providence, intimating that the murderer had been tracked to a private house, where he had taken

lodgings, and would be arrested during the night. On Saturday, this news having been ventilated, the public excitement became greatly intensified, and it was anticipated that an effort would be made to lynch the prisoner on his arrival in the city. Crowds repaired to the railway depot, at Twenty-seventh street and Fourth avenue, also at Forty-second street, at the upper end of the Harlem Railroad. At 5 o'clock, P.M., the train arrived, containing the officers and their prisoner. But the multitudes who waited and looked for the prisoner were doomed to disappointment, for the officers had prepared themselves before reaching the city for avoiding any attack from infuriated mobs, by taking their places in the first or baggage car, thus avoiding suspicion. In this way they came down to the lower depot, and were transferred to an express wagon, and rolled down to the Second Ward station-house.

THE ARREST AND HOW IT WAS EFFECTED.

We give the account of the arrest in the words of Officer Nevins:

Captain Smith and myself left the city on Thursday, in the twelve o'clock train of the Long Shore Railroad, for Stonington and Providence. The same afternoon we arrived at Stonington, and went on board the Stonington boat Commonwealth, to make inquiries for a sailor man, his wife, and child. The boat arrived that morning about two o'clock, and of course our only chance of getting trace of the murderer was from the officers of the boat. We heard of several women and children, but they did not answer the description; so we waited until nine o'clock that night, when Mr. Howard, the baggage-master, arrived in the Boston night train. He gave us information of two or three different women who stopped on the route between Stonington and Boston. The description of one man, woman, and child, who stopped at Canton, Massachusetts, was so near, that on the arrival of the boat from New York, at two o'clock on Friday morning, we left in the train which carried forward her passengers. On arriving at Canton, however, we found that the woman was not the one we were in search of, so we immediately returned to Providence, being satisfied that the murderer could not have taken the Stonington route. In Providence we called upon Mr. George Billings, detective officer, who, with several other officers, cheerfully rendered us every assistance. We drove around the city to all the sailor boarding-houses, and to all the railroad depots, questioning baggage-masters and every one likely to give us information, but could get no satisfactory clew, so we concluded they had probably come by the Fall River route, and Captain Smith went down to the steamboat Bradford Durfee, to make inquiry there. The deck hand remembered that on the previous morning a sailor and a little sore-eyed woman and child came up with them, and asked him if he knew any quiet boarding-house, in a retired part of the city, where he could go for a few weeks. He told him he did not, but referred him to a hackman, who took him off to a distant part of the city. The hackman was soon found, and at once recollected the circumstances, and where he had taken the party. It was then arranged, to guard against accidents, that the hackman should go into the house, and inquire of the landlady if this man was in, pretending that two of the three quarter dollars

which he had given him were counterfeit. He went there, and the landlady told him that the man was not in, but would be in that night. Arrangements were then made for a descent upon the house at two o'clock on Saturday morning. At this hour I knocked at the door, and at first the landlady did not seem inclined to let me in. I told her I was an officer who had arrested the hackman for passing counterfeit quarters, and as he had stated that he got them from the sailor, I had come to satisfy myself of the truth of the story. She opened the door, and we went up to this man's room, some seven or eight of us, and found him in bed, apparently asleep. I woke him up, and he immediately began to sweat—God, *how he did sweat!* I charged him with passing counterfeit money, because I did not want his wife to know what the real charge was. We got his baggage together, and took him with it to the watch-house. I searched him, and found in his pocket the silver watch, since identified as Capt. Burr's, also, his knife, pipe, and among the rest, two small canvas bags, which have since been identified as those used by the captain to carry his silver. In his pocket-book was \$121, mostly in five and ten dollar bills of the Farmers' and Citizens' Bank of Brooklyn. There was no gold in his possession. I didn't take his wife's baggage, and I felt so bad for her that I gave her \$10 of the money. Poor woman! as it was she cried bitterly, but if she had known what her husband was really charged with, it would have been awful. I took the \$6 from the landlady that he had paid in advance, because I didn't know but the money might be identified. When we got him to the watch-house, I told him to let me see his hands, for if he was a counterfeiter, and not a sailor, as he represented, I could tell. He turned up his palms, and said, "Those are sailor's hands." I said yes, and they are big ones, too; and then I told him I did not want him for counterfeiting, and he replied, "I thought as much." So I up and told him what he was charged with, and he declared upon his soul that he was innocent, and knew nothing of the matter, and was never on the sloop. I don't think his wife knew anything about it. Some time before he had picked up a yacht, and was to get \$300 salvage, and when he came home so flush with money he told his wife he had got the prize money. I asked him if he would go on to New York quietly with us, or stay in jail ten or fifteen days for a requisition. He said he would go with us, and we started at 7 o'clock in the morning. He behaved so coolly and indifferently that I at one time almost concluded we had mistaken our man. At the New London depot there was an immense crowd of people waiting to see the prisoner, and,

when we went through the crowd, they cried out, “There’s the murderer; lynch him—lynch him!” I told him that I would shoot the first man who touched him. At every station after that, as we came through there were large crowds curious to see the prisoner.

THE IDENTIFICATION OF THE PRISONER.

Soon after the arrival of the prisoner, the man John Burke, with whom he had lived in Cedar street, was confronted with the prisoner, whom he identified at once as William Johnson, the man who, with his wife and child, had left No. 129 Cedar street on Wednesday afternoon, and went on the Fall River boat. Mr. Simmons also stepped forward, and recognized the prisoner as one of the hands who sailed from this port with Captain Burr on board the sloop E. A. Johnson. Upon being asked if he knew Captain Burr, he said he did not, he never saw him, and never sailed in the vessel commanded by him.

On Sunday afternoon, an old man, named Charles La Coste, who keeps a coffee and cake stand near the East Broadway stage terminus at the South Ferry, identified Johnson as the man who, on Wednesday morning last, at about eight o'clock, stopped opposite to his stand, apparently looking to see what he sold thereat, when he asked him if he wanted some coffee. He afterward went into the booth and sat down, leaving what appeared to be his clothes-bag outside against the railings. He had coffee and cakes which amounted to the sum of six cents. When about to leave, he handed him a ten dollar gold piece in payment, when he asked him if he had no less change. He said he had, and pulled from his pocket a handful of gold, silver, and some cents, and, abstracting half a dime and a cent paid his bill. About this time some boot-blacks came round, and wanted to black his boots. He looked down at his feet, and said his boots were not worth the trouble. He then asked if he could get a carriage, when La Coste told him it was too early; he ought to get into an East Broadway stage, and ride up to French's Hotel, as he had asked for the whereabouts of a respectable place to put up at. To this suggestion he demurred, when a newsboy came up to him, took hold of his bag, and implored him for the privilege of conveying his bag to any given point of the metropolis. The boy took the bag and followed the man.

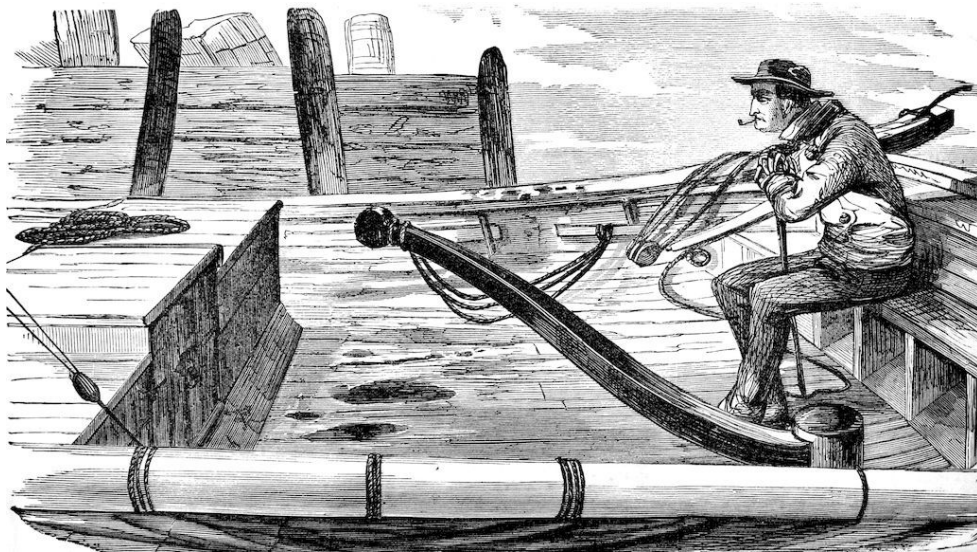
At a later hour the prisoner was brought from his cell and taken into the officers' room in the back part of the station-house, where a promiscuous assemblage of men had gathered in. The prisoner took his place among them. The boy, Wm. Drum, was then brought into the room, and in a

moment rested his finger upon the man whose clothes-bag he had carried from La Coste's stand to the house No. 129 Cedar street, one morning last week, about eight o'clock; he did not recollect which morning. The man thus pointed out was the prisoner. The same boy immediately afterward saw the bag, and identified it as the one which he had carried from the South Ferry to Cedar street. He asked Johnson fifty cents for the job, but, on his refusal, he compromised, and took three shillings.

Abram Egbert was introduced in the same manner as the boy, and selected Johnson as the man who spoke to him on the bridge of the Vanderbilt landing, on Staten Island, last Wednesday morning, between six and seven o'clock. He was not certain, but he thought he was the man.

Augustus Gisler, the boy who sold Johnson the oyster stew, the eggs, and the numerous hot gins, was also introduced in the same manner. He at once pointed out Johnson, and said, "That is the man."

Another little boy, who had asked to black Johnson's boots, at the South Ferry, was introduced. He looked carefully through the crowd, repeatedly fastening his eyes upon Johnson. The boy at last stopped opposite Johnson again; the prisoner noticed this, made a contortion, and turned away his face, when the boy said he could not see the man. The prisoner was then taken back to his cell, and his baggage underwent an examination in one of the rooms of the station-house.





THE BLOOD-STAINED CABIN OF THE OYSTER SLOOP "E. A. JOHNSON"

The first article identified was Capt. Burr's watch, which was found in the prisoner's possession by the detectives who arrested him. This watch the prisoner said he had had in his possession for 3 years. It was handed to Mr. Henry Seaman, an old friend of Captain Burr's, who after looking at it for about half a minute, pronounced it to be Captain Burr's watch; but to be certain, he would not open it until he had procured the necessary testimony to prove it. After a short absence he returned with a slip of paper from Mr. Seth P. Squire, watchmaker and jeweller, No. 182 Bowery, to whom it appears he had taken it to be cleaned nearly a year ago, at the request of Captain Burr. The following was the memorandum contained on the slip:

MR. BURR,
D B Silver Lever Watch,
J. Johnson, Liverpool, No. 21,310.
Cleaned April 5, 1859
by S. P. Squire.

The watch was then opened, and the name of the maker and the number of the watch found to correspond exactly with the name and number on the slip. By this means the watch was fully identified. Two small bags, which Johnson said he had made himself, were also identified by Mr. Seaman, and Mr. Simmons, of Barnes & Simmons, as having been the property of Captain Burr.

Mr. Edward Watts, brother of Smith Watts, identified the daguerreotype found in the pocket of a coat belonging to Oliver Watts, which was found in Johnson's clothes-bag, after his arrest, as that of a young lady friend of his brother, living in Islip, L. I.

Captain Baker, engaged in the oyster business in the Spring street market, recognized the prisoner as a man whom he had seen on board the sloop E. A. Johnson. He was certain of the man, as he had frequently seen him.

Mr. Selah Howell, taking a position right in front of the prisoner, as he stood in his cell, at once identified him as the man who took supper with Captain Burr and himself, on board the sloop, the night before she sailed.

Mr. George Neidlinger, the hostler who saw the man leave the yawl boat on the Staten Island beach, just south of Fort Richmond, identified the prisoner as that man. He also identified a glazed cap found in Hick's baggage as the cap he had on that morning.

Mr. Michael Dunnan also identified Hicks as the man whom he had met on the road between Fort Richmond and the Vanderbilt landing, last Wednesday, about six o'clock.

HIS INTERVIEW WITH HIS WIFE.

The wife of Hicks arrived in this city from Providence, on Sunday morning, and in company with John Burk visited her husband at the station house. She stated that on Friday evening last she got a New York paper, and seeing in it the story of the "sloop murder," proceeded to read it to her husband in their room, but before finishing it he said he was sleepy and wanted to go to bed, and she had better stop reading.

When taken down to the cell in which her husband was locked up, she broke out upon him in the most vituperative language, charging him with being a bloody villain. She held her child up in front of the cell door, and exclaimed, "Look at your offspring, you rascal, and think what you have brought on us. If I could get in at you I would pull your bloody heart out." The prisoner looked at her very coolly, and quietly replied, "Why, my dear wife, I've done nothing—it will be all out in a day or two." The poor woman was so overcome that she had to be taken away. She subsequently returned to her old quarters, No. 129 Cedar street.

On Monday, the prisoner Hicks, alias Johnson, was transferred to the custody of the U. S. Marshal Rynders, and upon the filling of several affidavits, he was committed for examination.

Such is a brief account of this horrible tragedy, than which nothing more calculated to excite public wrath has occurred in the neighborhood of this city for a number of years. That Hicks is the man who committed the triple murder on board the sloop E. A. Johnson, no doubt is entertained, and no one will regret his speedy satisfaction to the claims of public justice.

RUMORS IN RELATION TO HIS FAMILY.

We have been favored by a gentleman with the following account of the family of Hicks: The father of the prisoner lives at Gloucester, a few miles from Chepachet, Rhode Island. He used to be a collier in that neighborhood, and had the reputation of being an honest man. About fourteen or fifteen years ago he was employed by our informant. Simon Hicks, the brother of Albert W. Hicks, alias William Johnson, was several years ago sentenced to be executed for the murder of a man named Crossman, under the following circumstances: Mr. Crossman lived in Gloucester. He was an old bachelor, and lived alone. Simon Hicks and he were very friendly, and Simon used to visit him very often. One night, however, Simon went to Crossman's house, broke in at the door while the old man was in bed, and beat him to death with a club. He then helped himself to several hundred dollars of the old man's treasures, and in a few days left for Providence, a distance of sixteen or eighteen miles from Gloucester, taking with him a girl to whom he had been paying his addresses. In Providence he bought her a gold watch, and various other articles of finery. This lavish conduct caused suspicion, and he was arrested. He was examined in Chepachet, and afterward acknowledged his guilt. He was subsequently tried in Providence, convicted of murder, and sentenced to be executed. While awaiting execution, one of the prisoners in the jail, whose time had almost expired, opened a number of the cells, and there was quite a stampede of prisoners, among whom was Simon Hicks. They were all recaptured within a few days, with the exception of Simon Hicks, who has never been heard of since. This escape was deemed a very strange circumstance, inasmuch as Simon was known to be imbecile and unwary. His simplicity created much sympathy in his behalf. In referring to Simon, our New York prisoner admitted that some strange stories had been told about him, but he guessed they never amounted to much. The last he had heard of his brother was that he had gone to California.

THE LAST LETTER OF CAPTAIN BURR TO HIS WIFE.

As everything connected with this mysterious and bloody affair must prove to be of public interest, we republish an extract from the last letter of Captain Burr, in which he speaks of William Johnson as a helmsman, written to his wife from Coney Island, previous to the departure of the E. A. Johnson on her ill-fated voyage:

“This man, William Johnson, who lives in New York, is a smart fellow. He went at the mast and scraped it while we were at Keyport, without telling, while I was ashore. He is a good hand; can turn his hand to almost anything. He is a ship-carpenter, he says, and has got quite a set of tools. He understands all about a boat, only is not a very good helmsman to steer the sloop nice when beating to windward; he understands steering well enough other ways. It requires a man that has been very much used to sailing a boat by the wind to steer fast. We often get in company with vessels that are smart, when it requires a nice helmsman; then it requires my skill more. Smith is a good helmsman close by the wind. I don’t think Oliver is quite so good. I will write the first chance after we get in Virginia. Should we have a chance, we are going to Pionkatonk to see if we can get a load there. That is about five miles short of the Rappahannock River. Selah knows where it is. I have nothing more at present. Would like to see you very much.

“Your affectionate husband, ever,

“GEO. H. BURR.”

THE PRELIMINARY EXAMINATION.

On his examination, the facts which have been related above were given in evidence, upon which he was committed, and the Grand Jury found a bill of indictment for robbery and piracy upon the high seas against him.

THE TRIAL.

The trial commenced on the 18th of May, and lasted five days, during which time the prisoner maintained a show of cold indifference to the proceedings.

May 14—FIRST DAY.

It being announced that this extraordinary and mysterious tragedy would be brought to trial this morning, the court-room was densely crowded. Judge Smalley said he was informed by the District Attorney, that there were a large number of witnesses for the prosecution, and as the District Court was larger than the Circuit room, the proceedings would be conducted in the District Court-room.

There were several women in court who are to be examined as witnesses.

The prisoner stands charged with having, on the 21st of March last, made a violent assault on George H. Burr, on the high seas, on board the sloop Edwin A. Johnson, and there feloniously and piratically carried away the goods, effects, and personal property of the said George H. Burr, who was master of that vessel. The property consisted of about \$150 in gold and silver coin, a watch and chain of the value of \$26, a canvas bag, a coat, a vest, one pair of pantaloons, and a felt hat. The second indictment is the same as the first, but charges the felony to have been committed in the lower bay.

The prisoner was also indicted by the Grand Jury for the murder of George H. Burr, master of the Edwin A. Johnson, and two seamen (brothers) named Oliver Watts and Smith Watts. As robbery on the high seas is piracy, and punishable with death, the prisoner was placed on trial now for the robbery only.

The prosecution was conducted by ex-Judge Roosevelt, United States District Attorney, and Messrs. Charles H. Hunt and James F. Dwight, Assistant United States District Attorneys. Messrs. Graves and Sayles defended the prisoner, who was unchanged in appearance, and exhibited the same cool demeanor which had marked his conduct throughout the whole case.

The following Jurors were empanelled, after some challenges, and some being excused for having formed and expressed an opinion:

1. Bernard McElroy,
2. Owen Foley,
3. John Coulter,
4. Geo. W. Jackson,

5. Jas. C. Rhodes,
6. Isaac Jerome,
7. Andrew Brady,
8. Robert W. Allen,
9. John Farrell,
10. James N. Fuller,
11. John McCalvey,
12. Benjamin Sherman.

The following gentlemen were rendered ineligible, having formed and expressed an opinion in the matter: William A. Martin, Jos. J. B. Delvecchio, Dwight Johnson, Samuel Carson, Geo. Burbeck, John Latham, Thomas M. Clarke, and John Green.

The following gentlemen were challenged peremptorily by the prisoner's counsel: Robert Goodenough, Geo. H. Nichols, A. B. Lawton, and Oscar Johnson. Daniel F. Leveridge was challenged for favor.

Mr. Dwight proceeded to open the case for the government.

OPENING STATEMENT FOR THE GOVERNMENT.

Mr. DWIGHT said: You are empannelled, gentlemen of the jury, to try the issue between the United States and the prisoner at the bar, charged with robbery upon the high seas. Robbery committed upon the high seas, or in any basin or bay within the admiralty maritime jurisdiction of the United States, is declared by the act of Congress passed in 1820 to be piracy, and punishable with death. The indictment against the prisoner charges him in the first count with having on the 21st of March last, on the sloop Edwin A. Johnson, committed the crime of robbery upon George H. Burr, master and commander of that vessel, and with having feloniously and violently taken from him a watch, a large sum of money, and some wearing apparel. Robbery is the felonious and forcible taking the property of another from his person or in his presence against his will, by violence or by putting him in fear. It is larceny accompanied by violence. The punishment, as you will perceive, for the offence committed upon the high seas, is different from its punishment when committed upon land. It is to protect more effectually and punish more thoroughly offences occurring upon vessels upon the high seas, where the protection for person and property is not so great as it can be on land, where individuals are so much surrounded by the police regulations to protect them and their property. In this case, the prosecution will show to you, gentlemen, that on the morning of Wednesday, the 21st of March last, there was found floating in the Lower Bay of New York a deserted vessel. Her strange appearance attracted the attention of several vessels in that vicinity—among others the steam tug Ceres, which bore down to her, and the captain of which boarded this vessel. On reaching the deck there was presented a most unexpected and fearful sight. A state of great confusion appeared. The bowsprit of the vessel was broken off, and its rigging was trailing in the water. The sails were down, and the boom of the vessel, which had been set, was over the side of the vessel. There was no human being found on the vessel, and no light. Forward of the mast appeared a large pool of blood, which had run down to some cordage and sticks at the back of the mast, and also down the side of the vessel into the sea. This was just aft the forecastle hatch, on which, or near which was found some hair—a lock of hair. Amidships, and totally disconnected with

this appearance of blood on the foredeck, there was another large patch of blood, showing signs as if a body had lain there; this also ran down the side of the vessel. Still further aft, just back of the small companionway, they found traces of blood again, also disconnected with that in the middle or forepart of the ship. Aft there appeared signs of a bloody body having been dragged from the entrance to the cabin. There was blood upon the rail and over the side, and it seemed as if an endeavor had been made to wash it off. On descending into the cabin, a state of still greater confusion appeared there. The few articles of furniture were disarranged. The companionway steps were pulled down, and some of the sails which lay on the companionway were pulled out. The floor was wet and bloody, and bore signs of having been covered in its entire extent with blood, which had been washed off with water, probably brought in the pail which was found there. Upon the handle of the pail there was found some hairs, where the hand would naturally hold it. These hairs were of a different color to those found in the other parts of the vessel.

The appearance on the floor and the disposition of the articles lying in the cabin, together with the two auger holes found bored in the lower part of the cabin, where the floor slanted down, showed that an endeavor had been made in washing the floor of the cabin to let the water run down. The auger with which these holes were bored was found there, and also some little chips which had been bored out of the floor. It seemed as if the attempt had been given up in the cabin, and the vessel had been abandoned afterwards. There were a small stove in the cabin and a pile of wood under which the blood had run. On the wood was lying a coffee-pot or a tea-pot with fresh tea leaves in it. The side of the tea-pot was indented and covered with human hair, which was likewise black like that found on the pail. There was nothing further than this to direct suspicion, and the vessel was taken in tow by the Ceres and brought up on the morning of Wednesday, the 21st of March, to the slip at the foot of Fulton Market. On the affair being noised about the town, the sloop was visited by a large number of persons; among others by persons acquainted with the vessel and those belonging upon her. It was found that this was the sloop E. A. Johnson, owned at Islip, Long Island—a vessel belonging in this district, and commanded by George H. Burr, who was also part owner. The sloop had been engaged in the oyster trade in Virginia, and had recently come in, and had on the 13th of March, a week previous, cleared from here to go to Virginia for another cargo of

oysters. The crew consisted, when she cleared from here, on the 15th of March, of Geo. H. Burr, master, two sailors—Oliver Watts and Smith Watts—young men, brothers, residing at Islip, and the defendant, who, under the name of William Johnson, had shipped as first mate. During the day a great number of persons visited the vessel, and the daily press of the afternoon and the following morning scattered broadcast all over the city and its vicinity information concerning this affair. The attention of the public finally addressed to this fact was the cause of developing many slight circumstances, which gradually formed themselves into a chain of circumstantial proof directing the attention of the officers of justice to the offender, and resulting in the arrest of this prisoner. It was found that on Thursday, the 15th of March, the vessel sailed from here, being chartered by one Daniel Simmons, an oyster merchant of this place, living at Keyport, and one Edward Barnes, living at Keyport, to go to Virginia for a cargo of oysters; that it went out for a cargo as I have described, and that the captain had a large quantity of money in his possession to purchase oysters. The vessel went that week to Keyport, lay there some time, and in the last part of the week ran to Coney Island, and lay in Gravesend bay, waiting for a favorable tide and wind till Tuesday afternoon. During the Sunday, Monday, and Tuesday that the vessel lay there, the captain, crew, and others went on shore at different times, and one of the Watts boys had gone to Brooklyn on Monday or Tuesday, and returned on Tuesday, and on his return the vessel immediately proceeded to sea. The vessel had waited with its sails up, if I remember correctly, for the arrival of young Watts. He was taken off the beach in a yawl boat which was on board the vessel, and then she proceeded on her Virginia voyage. It was watched by persons who belonged to Coney Island, and also by two vessels lying at anchor at the same time, some distance from Coney Island. This was the close of the day—Tuesday about six or seven o'clock, if I remember rightly. From that time until the next morning only one thing is known of that vessel, and that by a connection of peculiar circumstances.

What was done upon that vessel during the night no mortal man save the prisoner knows. Oliver Watts and Smith Watts have never since that been seen in life. What became of them we can only judge by those circumstances which are thrown around by the appearance of the vessel and by the conduct of the prisoner, and other circumstances connected with him. Whether their bodies be in the sands of the lower bay, or floated out to sea,

and are tossed by the waves there, we do not know. The prisoner fails to give an account of them, and we can only suppose that they were murdered by him and thrown into the sea. Next morning, Wednesday, the 21st, the prisoner appeared upon Staten Island, with the yawl boat of this sloop. Except, as I say, by implication, nothing is known in the meantime. The circumstances to which I refer are these: The schooner J. R. Mather, Captain Nickerson, was going from this city to Philadelphia, clearing from here March 20, and running down the bay. Some time during the night, between twelve and two o'clock, the vessel, then being down off Coney Island, had a collision with a vessel coming in. It appeared that the vessel going out saw this sloop coming in, and on going within three or four hundred feet, the course of that other vessel was changed, and she run down directly to this schooner, as if to run across its bow. That seemed to fail, and the course of that vessel was again changed; but instead of running across the bow of the schooner Mather, it seemed to fail, and struck the bow itself, cutting it down within six or eight inches of the water's edge, and rendering the schooner incapable of proceeding to sea, and it returned for repairs. There was the finger of Providence again in that. On coming into this port the captain of the schooner J. R. Mather found that the sloop E. A. Johnson had come in, and by a comparison of the rigging of her bowsprit, found on the bow of his boat, with the rigging of the E. A. Johnson, that that was the vessel which caused the collision. Further than this, nothing is known of that night. There was no cry from the deck of the E. A. Johnson when it encountered the schooner; there was no hail, no attempt to disentangle themselves, and nothing was known of what was going on upon the deck of that vessel—whether there was a human being on it or not. The captain of the sloop saw a dark form aft, but could not say whether it was one man or two men. He knew that some person must have been on board, from the fact of her changing her course as I have described. On the morning of Wednesday, the 21st of March, about six o'clock, the prisoner came on shore at Staten Island, a little below Fort Richmond, which is in the Narrows, opposite Fort Hamilton. He was seen very soon afterward, coming on shore, by a Mr. Neildinger, whom he addressed, inquiring if his boat would be safe, designating where he had left her, to which Neildinger replied it would be all right, and the prisoner drew it upon shore, where it would be a little safer. The prisoner had with him a large canvas bag, which he carried upon his shoulders. After leaving Neildinger, he passed up Staten

Island, encountering one or more persons, whom he addressed, and came to Vanderbilt's landing, arriving there shortly before seven o'clock. He there inquired of the boat tender where he could procure some breakfast, and was directed to a shop, where he ate breakfast, and in payment offered to the boy who served him a \$10 piece, which the boy could not and did not change, and he afterward gave him some silver. Afterward, in conversation with Mr. Egbert, in charge of the station there, he said he was a seafaring man; that he had been on the vessel William Tell in the lower bay; had had a collision with another vessel; that the captain had been killed against the mast, another person had been knocked overboard, and he had merely time to escape from the vessel with the money. He is described by that witness as being excited. He took the ferry-boat Southfield, left there at seven o'clock, and came up to the city. On the way up he entered into conversation with Francis McCaffrey, a deck hand. He produced before him a bag of money, and asked him to count it. It was a canvas bag, and contained \$30 in silver, and a large quantity of gold. McCaffrey counted it, and the prisoner took possession of it again, and during the passage up had some more general conversation with him.

On the arrival of the Southfield at the Battery, between seven and eight o'clock, the prisoner took some refreshment—a cup of coffee, I think, and then hired a small boy to take his bag—a small canvas bag—filled with clothing and other articles, up to his house; it was taken up to his house in Cedar street, and left there. The prisoner lived at 129 Cedar street, with his wife; the other occupants of the house were Mr. and Mrs. Burke. They had various conversations with him during the day. During the morning the prisoner went out, and at the shop of Mr. James, on South street, exchanged the most of the money which he had (about \$150), part gold and part silver, and received in exchange bills on the Farmers' and Citizens' Bank of Williamsburg. He made the remark to Mr. James at the time, that he came honestly by the money. Through the day he packed up his clothing, and in the afternoon, with his wife and child, took the Fall River boat, running from here up the Sound, and went up to Fall River, telling the carman who took his baggage, if any inquiries were made for him, to throw the inquirers off the scent. From Fall River he went to Providence. The whole or most of these facts coming to the knowledge of the officers of justice, two persons followed on his track, and very soon traced him from Fall River to Providence, and after some search were enabled to find him there. He was

arrested on Friday night, the 22d or 23d March. They traced him to a small house in the outskirts of the city, and at one o'clock midnight obtained an entrance into the house, where they found him in a back room in bed. The windows and doors of the house were closed, and the defendant was found concealed under the clothes of the bed, with his head covered up. The officers withdrew the clothes, and found the defendant, there in a profuse perspiration and feigning sleep. He was awakened, or pretended to be awakened, by the officers. They said that they wanted to see him on a charge of passing counterfeit money on the hackman who had brought him to the house; he arose, and was asked to point out his baggage. He described two trunks, which they took with them. There were found on him a watch and a quantity of money—among the rest, about \$120 in bills on the Farmers' and Citizens' Bank of Williamsburg, corresponding with those exchanged for him by Mr. James of this city. The clothes were returned to this city, and next morning the prisoner was brought here and lodged in the Second District station-house. On his arrival, he was told that the charge of counterfeit money was a mere feint, and that that was not the real charge against him; to which he very coolly replied that "he supposed so," or something to that effect. To Mr. George Nevins and Mr. Elias Smith, the persons who pursued and discovered him, he said "he had no knowledge whatever of the sloop E. A. Johnson; had never known her or Captain Burr, and had not been on Staten Island for many months." These statements he has maintained to the present time, constantly refusing to give any account of himself in connection with this vessel, or of anything which transpired on board of her after she left her anchor in Gravesend bay. That denial, contrary to the truth, that he had ever known Captain Burr, or ever been on the vessel E. A. Johnson, or had been on Staten Island when he was charged with being there, shows a full consciousness of the fatal effects of any evidence tending to establish that fact if uncontradicted, and in that contradiction he persisted. On being brought to this city, he was confronted with various persons that he had known before; with the man who carried his baggage; with the deck hand of the Southfield, and with various persons who saw him on the sloop Johnson; the watch found upon him was, through the hand of Providence, identified as the watch of Captain Burr, worn by him on the day of his leaving this port. That watch the prisoner stated he had had in his possession for a long time; that he bought it from his brother,

and paid a certain sum of money for it; and as to the other articles, he claimed that they were his, and gave various accounts concerning them.

On the Monday following his being brought here he was examined before a United States magistrate, was indicted, and is now brought before you for the offence of robbery on the high seas. I have thus briefly gone over the various circumstances of this case as they will be produced to you by the evidence. I deemed it necessary to state to you the line of evidence that is intended to be pursued by the prosecution, that you may understand the bearing of each portion of the testimony toward the rest. You will perceive in this case one peculiarity. A great number of witnesses will be examined for the government, and among these witnesses there is a very slight connection, either with each other or with the individual himself—particularly with each other. Various witnesses will be produced before you from Islip, Gravesend, Staten Island, New York, and Brooklyn, who are unacquainted with each other, who each come up to add their little fibre to this strong cord of proof which is thrown round this defendant. Each little item of evidence is of no particular strength, of no decision in itself, but only forming a strong chain, a perfect chain, as claimed by the government, fixing without question and without doubt the guilt of this offence upon the prisoner. Your attention, gentlemen, is invited to this carefully and scrutinizingly, which scrutiny, I feel convinced, you will give to it. It is a question of great interest—it involves the punishment of a terrible crime. If this prisoner is the true offender, the result may be very serious to him. It involves a vindication of the law and the punishment of a crime which he thought he had covered up; for there is very little doubt he thought he had sunk the vessel by the collision in the Lower Bay; and I think you will say, as I have, in looking over the evidence, that the hand of Providence, in marking the track this man was to pursue, has placed upon that track the eyes of those who would come up afterward to identify him. It seems strange in this centre of swarming thousands, at such a time of the day as this prisoner escaped from that sloop, he could not have hidden himself. It seems as though there was but one eye to watch, and one instinct to follow and observe him. From the very time that he landed on Staten Island until he went to Providence, his whereabouts was known all the time. I cannot explain either to you or to myself what it was that caused him to be watched; that he was watched and observed will be shown. From the very commencement of his being seen on the E. A. Johnson till he was brought

here, everything is known concerning him, save the twelve hours intervening from his sailing from Coney Island till the next morning. He has been called upon to give an account of the property of the Wattses and Captain Burr—but he claims it as his own. He has been called upon to give an account of those men with whom he was, and who are no doubt already dead; but he utterly disclaims any knowledge of them or of the vessel upon which they were. That, gentlemen, you will judge of on this trial. You will say whether he is guilty of the triple crime, the double, bloody, damning crime that occurred on the deck of that vessel; and if so, as jurors and citizens, whatever may be the result to him, and whatever the punishment, I have no doubt but that your verdict will be in accordance with the law and the facts.

THE EVIDENCE.

Selah Cowell was the first witness called, and being examined by Mr. Dwight, deposed: I reside at Islip, Long Island; I know the sloop E. A. Johnson; I built her myself; I am an American citizen; I owned one half of her, and Captain George H. Burr owned the other half; he was an American citizen; I saw the prisoner at the bar on board the sloop E. A. Johnson, on the Wednesday evening before she left; she was at the Spring street dock; she had been lying there a week; she cleared on Thursday, 15th; Captain Burr told me he was going to Deep Creek, Virginia, for oysters; the crew consisted of Captain Burr, Oliver Watts, and Smith Watts, and the prisoner; Captain Burr told me he shipped the prisoner as mate; Captain Burr was about thirty-nine years of age, Oliver Watts was about twenty-four, and Smith Watts about nineteen; I knew Captain Burr for a long time; the color of his hair was dark; Oliver Watts had very light hair, and Smith Watts had dark brown hair; I don't know the handwriting of the boys (Watts); I have seen considerable of Captain Burr's writing; I saw the E. A. Johnson at the Battery when she was brought in by the harbor police; I saw the yawl boat of the Johnson with the harbor police; she had that yawl boat before she left; I took the Johnson to Islip; on examining the Johnson I found a valise—a square, black, canvas valise—and some clothes; I brought them here (identifies the valise); found the things now in it, and a knife in it; saw the prisoner in the sloop the night before she sailed; saw him next in court before the Commissioner.

Mr. DWIGHT to the Court—The examination before the Commissioner took place on the 28th and 29th of March.

Cross-examined by Mr. GRAVES—I had no conversation with the prisoner when I saw him on board the sloop on the Wednesday; I never saw Captain Burr since; Oliver Watts was a large man; he would weigh about 170 pounds; Smith Watts would weigh, perhaps, 180 pounds; he was very large for his age; Captain Burr was a small man; probably did not weigh more than 125 or 130 pounds; it was after the examination before the Commissioner—some four or five days—that I found the valise on board; I gave it to Henry Seaman; I took the sloop over to Hoboken, lay there a

couple of days, and then took her to Islip; the Watts boys were on board the sloop the Wednesday evening before she sailed.

Re-direct.—I have seen Captain Burr write; I had business transactions with him for the last nine years; when the defendant was on board on Wednesday evening he was dressed with a blue shirt and overalls, like those I found in the vessel; I was on board about half an hour; I took supper there; the prisoner was at supper also; he sat at the table with us (shipping articles produced); I recognize the names, etc., here, to be in Captain Burr's handwriting.

JOHN A. BOYLE deposed—I am enrollment and license clerk in the Custom House (produces a book); the E. A. Johnson was enrolled on 3d of December, 1858, as an American vessel (objected to by prisoner's counsel; admitted; exception taken.)

DANIEL SIMMONS deposed—I reside at Keyport, New Jersey; I am in the oyster business; I know the sloop Edwin A. Johnson; I had her chartered last spring from this port to Virginia for oysters; the last time I chartered her was on the 14th of March; I knew Capt. Burr for two years; I sailed once with him; I think she left here last on Thursday morning the 15th of March; I settled with Capt. Burr for his charter on Wednesday afternoon, 14th March; I gave him \$200 in silver coin, quarters, halves, and ten and five cent pieces; I gave him other money.

Mr. Graves objected to any proof of the payment of coin to the captain, on the ground that the indictment did not warrant the allegation.

The Court was of opinion that the objection was not well founded, and overruled it.

Examination continued.—I paid him the balance of his charter money in gold; two tens, two fives, a two and a half, one dollar in gold and a half dollar; I gave it to him in a shot bag; it belonged to Capt. Burr, but I had it in my safe, with the money in it, for some days before; I did not know where the captain used to keep his money; there was a secret drawer in the sloop where I kept money when I sailed with him; I do not know that Capt. Burr ever kept his money there; I have seen that bag since, when it was taken out of the prisoner's pocket at the Second precinct station-house; I saw it taken out of his pocket; there was nothing in the bag then; there were two bags—I only knew one of them; I saw the prisoner on board the sloop Edwin A. Johnson on the Wednesday before she sailed, at the foot of Spring

street—(bag produced); to the best of my knowledge, this is the same bag that I gave the captain the two hundred dollars in; I saw the prisoner on board in the forenoon of Wednesday, and again in the evening; I think he had a monkey jacket on; I saw the prisoner again, I think, at Keyport, on board the sloop; I was about thirty yards from him; it was between daylight and dark; I could not swear positively to him being on board at Keyport; the next time I saw the prisoner was at the Second precinct station-house, when he was brought back from Providence; it was on a Saturday; I had some conversation with him; I asked him if he had ever seen me before; he said he had not; this was in the back room of the station-house; Captain Weed asked him if he knew me, and he said he did not; I told him I saw him on board the Edwin A. Johnson, at Spring street dock; he said he never was there, and did not know there was such a vessel; I asked him if he knew Capt. Burr; he said he did not; that he never saw him and never was on board the vessel; when I saw the prisoner on board the sloop his whiskers were red and full; when I saw him after, his whiskers were darker.

Cross-examined.—When I hailed the vessel at Keyport, I asked them where the captain was; and I think the prisoner is the man that answered me, but I am not certain; I had no conversation with the prisoner on board the sloop at Spring street; the first time I spoke to him was at the station-house; Captain Weed asked me if I knew him and I said I did; I identify the bag by the strings; I have no other marks to identify it; the bag was pretty nearly full; there was no hole in the bag I gave Captain Burr; there is a hole in this one produced.

DAVID S. BALDWIN deposed—I live at Islip; I know the prisoner; I saw him on board the sloop on the 13th March; he was helping to get out oysters; Captain Burr was not on board; the prisoner told me that he was going to Virginia with Captain Burr for a load of oysters; he told me that night, that if I wanted to go up town he would stay on board and mind the vessel; I was cook; this valise I saw before; the prisoner handed it to me when he came on board on the 13th; the prisoner did not stay on board that night (examines the contents of the valise); I saw this knife before with the prisoner, on board; he took it out to cut a piece of string; I know it by this piece of the handle being rough, and the rivet being bright; at that time the prisoner wore his whiskers as he does now; I saw the prisoner on Wednesday morning on board the sloop at breakfast; I did not see him again until to-day.

Cross-examined.—I had been cook with Captain Burr; I left the sloop on Wednesday; Smith Watts took my place as cook; the prisoner first came on board between six and seven o'clock on Tuesday morning; I never saw him before; I don't know how he came to tell me he was going to Virginia with Captain Burr; the captain told Johnson if he wanted to go up town that night he could go; Johnson said to me if I wanted to go he would stay on board.

JAMES H. BACON deposed—I am in the oyster business; I know the prisoner at the bar; I saw him on board the E. A. Johnson on the 13th March; I was there two days getting out oysters; Johnson was there shovelling out oysters; he wore his whiskers same as he does now; he had a check shirt, short coat, and comforter about his neck; I next saw him after his arrest, when I was called on to identify him.

Cross-examined.—I reside at Port Richmond; I was examined before the Commissioner; he was working on board the boat helping me to fill out the oysters; I think he had a dark pair of pantaloons and a Kossuth hat; I think in the morning he had on a monkey coat, and when he went to work he pulled on a blue shirt; I had no conversation with him more than to tell him to fill the baskets a little fuller.

REUBEN KEYMER deposed—I am in the oyster and fish business; I knew of the sloop E. A. Johnson being at Gravesend in March last; I don't recollect the date; she came there on Sunday and left on Tuesday night; the next day (Wednesday) I saw the sloop towed up by a steamer; I saw the prisoner the day the sloop sailed from Gravesend; he came ashore after one of the Wattses; it was just at sunset; he came ashore in the yawl boat; the sloop was about one hundred yards off; the prisoner was sculling the yawl; I was afraid he would run foul of me; the prisoner and Watts returned to the sloop in the yawl boat; the prisoner was dressed in a coat of the description of the one produced; I watched the sloop going out; she went southwest to clear Coney Island, and then she took a southerly course (a chart of the bay produced—the witness describes to the jury where the sloop lay, and her course); I saw her three miles out to the east of Sandy Hook; the wind was west northwest; the sloop was going about eight knots an hour; when she got out, she set her flying jib; at the rate she was going she would pass Sandy Hook in about an hour; when I saw Johnson come ashore from the sloop, I think I recognized the boy that went back with him as one I had seen on the sloop the day before.

Cross-examined.—I was not well acquainted with any of them except Capt. Burr. I am certain of the prisoner being the man who sculled the yawl; I told the man in my boat not to run into him; I turned to the prisoner and said to him, “Now I suppose you are going to give it to her;” I was in a row boat; we were rowing our boat; I next saw the prisoner in Court before the Commissioner; I think I stated before the Commissioner that the prisoner had a monkey jacket on when I saw him in the boat; I stood about five minutes on the shore and then went to my house; I saw from the house about three miles out; if she kept the southerly course I suppose she would have fetched up about the Highlands, below Sandy Hook; she made a straight wake. (Witness again described the course of the sloop on the chart.)

CHARLES BAKER deposed—I live at Gravesend; I knew Capt. Burr; I know the sloop E. A. Johnson; I saw her in March last at Gravesend; I saw Capt. Burr come ashore at Gravesend bay; knew Smith and Oliver Watts by sight; I saw the prisoner Johnson come ashore and take away one of the hands; I saw the sloop go away in about eight or ten minutes after the prisoner and the young man got on board; Capt. Burr was on board; there were four on board altogether.

Cross-examined.—The young man had a small bundle under his arm; never saw the prisoner before that; had no conversation with him; he was a stranger and I took a little more notice of him than if I knew him; he had a kind of monkey coat on; he had whiskers; he had none on his upper lip then that I could see; I was not nearer to him than the length of this room; I did not see which of the Watts boys went along with him.

JOHN S. WHITWORTH deposed—I live in Gravesend; I saw the prisoner at Gravesend beach on the 19th or 20th of March last; he came ashore in a yawl boat; I saw him raise the bow of the boat on the beach; I was painting a vessel at the time; the boat was not more than a few minutes there when I saw her go back again toward the E. A. Johnson, which was about 100 or 120 yards off; I saw the prisoner on the day following; he came ashore in the yawl boat; I did not see him go back to the sloop that day; I don’t think he had any coat on on Monday; I think he had a monkey coat on on Tuesday.

Cross-examined by Mr. SAYLES.—The next yawl boat was coming ashore when I left off work on Tuesday; I went away before she came to the beach;

the prisoner's side was to me when he pulled the boat on the beach on Monday.

By the consent of counsel the jury were permitted to separate after suitable caution from the Court not to converse with any person on the subject of this trial.

Adjourned to Tuesday at ten o'clock.

SECOND DAY.

RICHARD ELDRIDGE, examined by Mr. Dwight, deposed that he saw the sloop E. A. Johnson at Gravesend on the Sunday morning and Monday; went on board of her; saw Captain Burr and the two Watts boys, and Johnson, the prisoner, on board; saw Johnson on board the sloop first on Sunday, Monday and Tuesday. I went out in the Sirocco, in company with the sloop, past Coney Island; we were bound up to the Health Office; it was about sunset when we went out; Captain Burr, the two Watts boys, and Johnson were on board when she left; she went on the usual course of southern vessels; I took a letter from Captain Burr to his home; Johnson wore a beard same as now, but no moustache on the upper lip; never saw the prisoner since until yesterday.

Cross-examined.—Knew Captain Burr well for years, and also knew the Watts boys; I did not know the prisoner before that time; I had no particular conversation with him; Captain Burr told me he was going to Virginia.

GEORGE NEIDLINGER deposed—I live on Staten Island, at Port Richmond; I saw Johnson, the prisoner, at six o'clock on the morning of the 21st of March; I was standing at the barn door; he came up to me and asked me if there was any one to interfere with his boat, and I said no; he left his boat on the south side of the fort, and he came from that direction; he told me he left the boat "back there;" I afterward went there and saw that the boat had been hauled up by some boys; the harbor police came for the boat and took it away the next evening; there was nothing in the boat that I could see but some sand, oyster shells, and oars; the prisoner went toward the Vanderbilt landing; he had on a monkey jacket and a Kossuth hat—(jacket produced)—it was like this; he had a bag, like a feed bag, which he carried on his shoulder—(witness described on the diagram where he saw the prisoner)—he landed on the point below Fort Tompkins; Vanderbilt's landing is about two miles from Fort Tompkins; the prisoner wore his whiskers pretty much as they are now, only he had no hair on the upper lip; at the examination before the Commissioner he had no whiskers on the side.

Cross-examined.—Had never seen the man before; he had no conversation with me except to ask if any one would interfere with his boat;

he had a monkey jacket and Kossuth hat, but I did not notice his pants; I made a mistake before the Commissioner in stating that the jacket came down below the knees; I meant to say that it came down to his hips; I corrected myself.

To the COURT.—I think I changed my testimony before I left the Commissioner's Court.

Cross-examination continued.—I saw the prisoner put on the coat before the Commissioner, and then I changed my mind.

To Mr. DWIGHT.—I am not an American; I am a German.

MICHAEL DURNIN deposed.—I live at Staten Island; I know Hicks, the prisoner; I saw him on the 21st of March; I was going down to Port Richmond, and met him with a bag on his shoulder; he bid me good morning, and I bid him the same; he asked something about his boat; he went toward Vanderbilt's landing; he had a bag on his shoulder, like a feed bag.

This witness was not cross-examined.

AUGUSTUS GUISLER deposed—I live at Stapleton, but attend bar at Vanderbilt's Landing; I know the prisoner; I saw him on Wednesday morning, 21st March; he came to our shop, and said he wanted something to eat; he asked me if I had any coffee, and I said not, but told him where to get it; he went out and came back again, and said they were not up; he asked for eggs, and invited Mr. Hickbert to take a drink; he showed me a \$10 gold piece, and asked me if I wanted it; I said, "No, sir, I have not change for it;" he then took some silver and paid me; I would not know the bag; the coat he had on was like that produced; it had patches on the elbows like this; Mr. Hickbert asked him if he was a seafaring man; he told Mr. Hickbert that he was captain of a sloop; that he had been run into, and one man was killed, and another knocked overboard; he said he was down stairs asleep at the time, and had only time to get his clothes and the "needful" (at the same time shaking the bag), and come ashore in the yawl boat; the bag in which he had his money was something like this one produced; he took the \$10 gold piece out of the bag; he was about twenty minutes in our shop.

Cross-examined.—I didn't count the money; Mr. Hickbert did not count it; I did not see the bag in his hand when he first came; he did not take it out of his pocket; he had a handkerchief in his hand; when he offered me the gold piece, he had the bag in his hands, leaning against the bar; he finally

put his hand in his pocket and paid me; could not tell whether the bag was full or not; it looked like this bag; I have seen a good many shot-bags; I am seventeen years of age; I next saw the prisoner at the Second Ward station-house; Captain Weed sent for me; they told me they thought they had the man; I went there and identified him.

To the COURT.—There were thirty or forty persons in the station-house at the time; I picked him out; no one pointed him out to me; I asked Captain Weed where he was; he said he would not tell me; that I was to point him out; there were others there; they all identified him but one little boy; the people were not mostly in policemen's dress; there were all kinds of clothes.

ABRAHAM S. HICKBERT deposed that he saw the prisoner, on the 21st March, at the Vanderbilt ferry, at about half-past six o'clock; he asked me where he could get something good; I showed him; he went in and asked Augustus, the barkeeper. This witness corroborated the last witness as to the conversation with the prisoner, and further added that he told him that the vessel he was on was the William Tell; that he had been run into by a schooner, and one man was killed against the mast, and another knocked overboard. The prisoner shook a bag in his hand when he said he had only time to save the one thing needful.

Cross-examined.—I had never seen him before, to my knowledge; I cannot tell exactly how he was dressed, nor whether he had whiskers; I should think the man was about five feet eight inches; I did not take particular notice of his height; he said he was on the William Tell, and had been run into that morning in the lower bay.

To the COURT.—Next saw the prisoner at the police station-house; identified him there by his face; he was not pointed out to me by any one.

To Mr. GRAVES.—To the best of my belief, he is the man I saw at Vanderbilt's landing; I would not like to swear right up and down that he is the man.

FRANKLIN E. HAWKINS deposed that he is captain of the sloop Sirocco; I knew Captain Burr and the Watts boys; heard Captain Burr say he was going to write a letter home; saw the prisoner on board the sloop E. A. Johnson; my vessel was lying at Coney Island, and the sloop Johnson was lying at the same place; on the Sunday before she sailed I went out with her; Johnson came ashore in the yawl boat on the evening before the sloop

sailed; Richard Eldridge took the letter from Captain Burr to his home in Islip; Captain Burr had dark hair; one of the Watts boys had light hair and the other a little darker; I do not know Captain Burr's watch.

Cross-examined.—The prisoner met me when he came ashore on Tuesday, and asked me if I was Oliver; I had no conversation with the prisoner; heard him talk with the captain; I can swear positively that this is the man.

PATRICK McCaffrey deposed—I am a deck hand on the Staten Island ferry-boat Southfield; I know the prisoner; I saw him in the gentlemen's cabin about seven o'clock on the morning of the 21st of March; I was brooming off the cabin; he was sitting down, and he called me over and asked me if I was a judge of this country's money; that he was afraid them fellows were cheating him; I said I was a pretty good judge of gold and silver, but did not know much of bills; he asked me to count the money; I counted out three or four gold pieces and told him what they were; the bag was a kind of a shot bag; he asked me where the water closet was and I showed him; he told me to mind his canvas bag and he would give me the price of my bitters (identifies the coat); my attention was particularly called to the coat by it being bare in some places and having patches on the elbow.

Mr. DWIGHT asked that the prisoner now put on the coat.

The JUDGE said that he could not compel the prisoner to do so, as it might aid other witnesses for the prosecution, who are now in court and have not yet been examined.

Examination continued.—Next saw the prisoner in the Second Ward station-house; he denied having ever seen me; I looked all around the station-house, and when I saw him I said, "There's the man."

To the COURT.—There were forty or fifty in the station-house; my attention was not directed to him; no one pointed him out to me.

Cross-examined.—Had never seen him before I saw him on board the Southfield; he had whiskers up to his ears, but no moustache; his whiskers were blacker when I saw him in the station-house than they are now; I have not a doubt about the coat; I can swear positively to it and the man; I cannot swear positively to the shot bag; I was born in Ireland; I am only two years here; I have lived at Staten Island ever since; I have been a coachman, and have been now nearly eighteen months on the ferry-boat; I can't tell how many passengers were in the ferry-boat that morning.

WILLIAM DRUMM, a lad, deposed that he met the prisoner on a Wednesday morning, about eight o'clock; can't tell when; met him at the South ferry; it was about the 21st of March; I saw him at a coffee and cake stand at the ferry, kept by Charley McCosten; he got a cup of coffee and a piece of pie; he put down a gold piece, and the man said, "Oh, ——, have you no smaller change than that!" he then gave him something else. I carried Johnson's bag to the corner of Cedar and Greenwich streets. I asked him fifty cents, and he gave me three shillings, and said if I did not go out of that he would kick me (laughter); there was a Dutchman there who told him two shillings were enough; I pointed out the prisoner on the following Sunday, in the station-house.

Cross-examined.—I testified before the commissioner that the bag was very heavy and cut my shoulder, and that it did not seem to be filled with clothes; I stated before the commissioner that the prisoner wore a greyish coat; I saw him first at the coffee stand; he wanted a carriage first.

PATRICK BURKE, deposed—I know the prisoner for about three years, by the name of William Johnson; he had a room from me in Cedar street, near Greenwich; the last time I saw him was on the Wednesday before his arrest; I did not remark his dress; he had nothing with him that I saw; I saw him again that day, in my house, about four o'clock; I saw some bills with him that day; I do not know how much; I do not know that he made any change in his clothes or his whiskers; he went away by the boat that evening; he took his wife and child with him; he took some things with him; he left a ship's instrument (a compass, I think) behind at my house; I had no conversation with him that day more than to bid him the time of the day; he always paid me my rent like an honest man.

Cross-examined.—I think it was before noon I saw him with the bills in his hands; often saw bills with him before.

CATHARINE BURKE, wife of the last witness, corroborated her husband's testimony; Johnson did not say anything about what voyage he was going on the last time he went to sea.

Cross-examined.—I had seen the prisoner with money on previous occasions.

ALBERT S. JAMES, broker, deposed—I saw the prisoner first on Wednesday, the 21st March, at my office in South street; he asked me to take some silver at as low a rate as possible; I had engaged to take some

silver from the market, and asked him if he came from there; he said no; the "Cap" was sick; that he came honestly by the money; I changed about \$135 in silver, and \$35 in gold; it was in a bag and tied up in a handkerchief. (Handkerchief and bag produced.) I think that is like the bag but cannot identify the handkerchief; a man came into the office and the prisoner seemed to hesitate, and did not seem to want to open the bag before the man.

Q. What did you give him in exchange for the gold and silver.

A. I gave him \$130 in Farmers' and Citizens' Bank of Williamsburg, Long Island; their denominations were tens, fives, threes and twos; I counted the money; the prisoner did not appear to count the money after me; he did not see how much there was.

RICHARD O'CONOR, cartman, deposed—That he saw the prisoner on the 21st of March, and took his baggage to the Bay State (Fall River boat); the prisoner walked, and I saw him at the boat afterward. He told me if any one inquired where he was going, to tell them it was none of their business. When they were taking the luggage out, a woman asked him where they were going, and he said they were going to Albany to live on a farm.

Witness was not cross-examined.

GEORGE NIVENS, officer of second precinct, deposed—That he understood that a man answering the prisoner's description had left in the Stonington boat, but traced him to Providence, where he arrested him in a boarding-house. I found the hackman who had conveyed Johnson, and he took me to the house; I found him in bed with his wife; I shook him up and searched him; I found on him a watch; I took away two trunks, two bags, two handkerchiefs, and a knife, a pocket-book, and some bed-clothing, which he claimed to be his. (Identifies the watch, pocket-book, and bags; cannot identify the handkerchiefs.) I found in the pocket-book \$121 in bills on the Farmers' and Citizens' Bank of Williamsburg, mostly fives and tens; there are some ones; there are also some on the Lee, Huguenot Bank, and City Bank of Brooklyn; when I arrested him first I told him I arrested him for passing counterfeit money; I did not make any statement to him at the station-house in Providence; I believe Mr. Smith did; I brought him to New York next day; he told me that the watch belonged to his brother; he said he had not been in New York or Staten Island during the month of March; that he had been speculating around the market, and had about \$60; at another

time he said he got the money from his brother; on counting over the money in the pocket-book I found there were \$121 in it; when I informed him in the cars of the charge against him, he denied all knowledge of Capt. Burr and the sloop E. A. Johnson.

Cross-examined.—At the time I had the conversation with him in the cars he was in irons; he did not tell me that he could not read or write.

To Mr. DWIGHT.—When I arrested him in Providence he told me his name was Hicks—Albert W. Hicks.

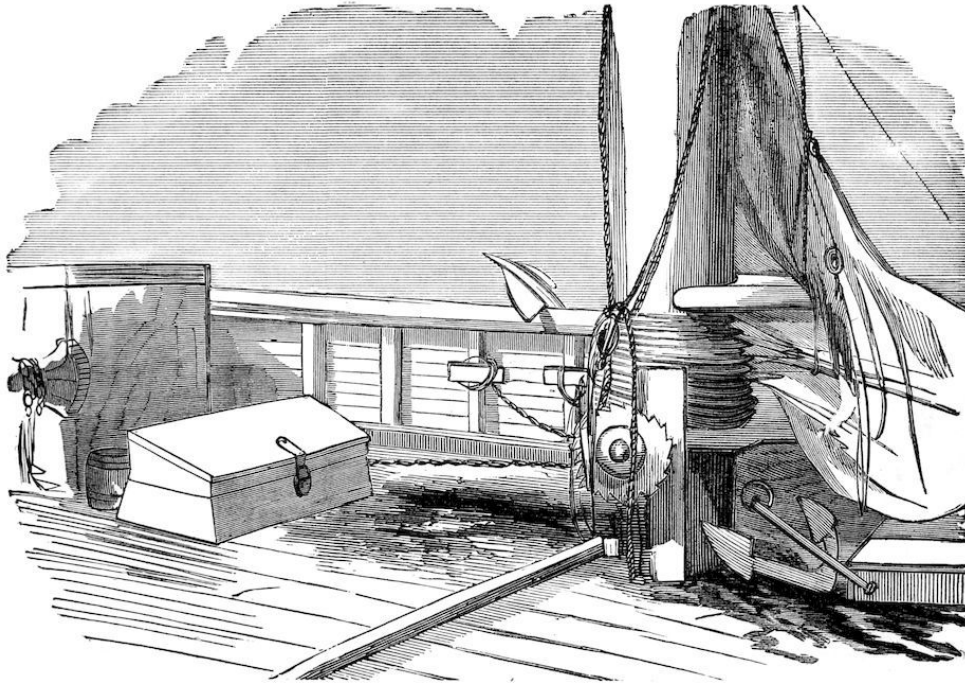
ELIAS SMITH deposed—That he was with Nivens when he made the arrest.

The COURT.—Are you a police officer?

Witness.—No, sir; I am a reporter of the *Times*.

To Mr. DWIGHT.—The prisoner denied all knowledge of the sloop E. A. Johnson or Captain Burr; he said he had not been in New York for two months; I understood him to convey the idea that he had been in Providence for two months (identifies the watch and pocket-book as those taken from the prisoner in Providence); I cannot identify the clothing; I addressed the prisoner at the station-house, and said to him, “Hicks, you are charged with the murder of three men;” he said nothing; I then changed the language and said to him, “You are charged with imbruing your hands in the blood of three of your fellow men for money;” the prisoner shook his head and said, “I do not know anything about it;” I then said to him, “You have been on board the sloop Edwin A. Johnson;” he shook his head and said he did not know anything about it, and was never on it; Mr. Nivens read the newspaper accounts of the transaction to him; he said he did not care much about the arrest except for the interruption to his business, as he had purchased a place in Providence; I told him he would be identified when he got to New York; he said we might think what we liked; he seemed annoyed at our pressing the subject.

Cross-examined.—I never found out how much he had paid; I said to him, “If you are innocent, then you are willing to go back to New York?” after hesitating, he assented; Detective Billings, of Providence, was with me when he signed the agreement to come back.



SCENE OF THE FIRST CONFLICT ON BOARD THE SLOOP "E. A. JOHNSON," WITH THE BLOOD-STAINS ON THE DECK.



PORTRAIT OF OLIVER WATTS.



PORTRAIT OF CAPT. GEORGE
BURR.

SAMUEL M. DOWNES deposed—I am captain and pilot of the steamtug Sirius; I picked up the sloop E. A. Johnson on the East Bank, near the Romer, about half-past six o'clock in the morning; I brought her to this city, and left her in the river at the foot of Fulton Market; the bowsprit of the sloop was broken off about midway; the jib hung overboard; there was no small boat on board; I boarded the sloop; one of the men of the schooner Telegraph had boarded her about the same time (witness describes the appearance of the sloop on a model produced in court); there were pools of blood on the deck, and the cabin appeared as if some one had been slaughtered there; there were marks of a hand, as if struggling, and then there appeared to be a blow of a hatchet where the hand mark was, as if it was cut; the blood flowed down to the scuppers; there were evidences of a scuffle; there was a mark of a foot in the blood, as if some person with a boot or a shoe had stepped in it; the appearance of the blood from the companionway seemed as if some person had been dragged from there and thrown overboard; there was some hair found in the pool of blood forward; it was dark brown hair; I did not remove the hair or anything on board; I brought her to New York; arrived about half-past ten o'clock at the foot of Fulton Market, and gave her up to Captain Weed of the Second Precinct.

Cross-examined, but nothing material was elicited.

Re-direct examination.—The wind was blowing north-northwest, which would bring the sloop out to sea.

HART B. WEED, examined by Mr. DWIGHT, deposed—I am captain of the Second District police; I examined the clothes brought by Nivens from Providence; there were coat, pants, vest, and some flannel clothing contained in a bag used for feed; the clothes produced—coat, vest, and pantaloons—are those given to me by Officer Nivens; there was also a hat (several other articles of clothing produced); these were either found in the trunk or the bag; I recollect finding a daguerreotype in the trunk or bag (produces it); I sealed it up and gave it to the clerk of this court. (The daguerreotype is of a young lady, and is said to be that of the sweetheart of one of the Watts.) I was at the station-house when the prisoner was brought there; he said he knew nothing about it; I asked him if he knew anything about the vessel or the murder, and he said “No; he knew nothing about it, and had not been in New York, Staten Island, or Long Island for some time; Dr. Bonton, the coroner’s assistant, accompanied me to the sloop; we found a lock of brown hair—human hair—lying partially in a pool of blood on the deck; I gave the hair to the Assistant District Attorney; it was sealed up in the manner of this package produced; I cannot now swear that this is the hair; it was then clotted with blood; I also found hair on the coffee-pot in the cabin; I gave that to you (Mr. Dwight); (another package produced) this is the hair found on the coffee-pot; the blood had the appearance as if a person lay down and the blood flowed at each side.”

The cabin had a great deal of blood and had the appearance of being washed down; I found a bucket, with a rope, which appeared to be used in taking up water; I found a broom there; there was blood and hair on the rope attached to the bucket; sails and other things had been removed out; there were holes bored in the deck; we found an auger with blood on it; the auger fitted the holes in the deck; the coffee-pot was lying behind the stove, it seemed to be bruised; there was hair on it; we searched under the companionway and found a lead line there; we found some secret drawers; I saw the valise that was identified here yesterday in the cabin of the sloop; we found spots of blood on the ceiling of the cabin, and on each side of the door, as if a person had been drawn out of it; there were three cuts on the ceiling, which appeared to have been done with a sharp instrument; we found cuts on the clothing of the captain’s berth; the railing had the appearance as if a hand was on it and had been cut; we saw marks which seemed as if a person with bloody clothing had been shoved down the side of the vessel; there was blood on the stove and wood in the cabin; the cabin

was in a deranged condition; I received some tackle from Captain Nickerson, which consisted of some of the gearing of the vessel; I took them down with one of my men, who had been a sailor, and we found they corresponded with the bowsprit of the Johnson.

Cross-examined (a shirt and linen coat produced).—These are the clothing we found in the captain's berth with cuts on them; there was no blood on them nor on the bed; they had the appearance of being clean and folded up; I partially examined the prisoner to see if there were any marks on him; I found no fresh marks of violence on him; I lifted his shirt and looked at his body; I looked at his arms; I saw the figure of an eagle printed in India ink. I saw no other marks on his arm.

The hour of adjournment having arrived, the Court adjourned to ten o'clock Wednesday morning.

THIRD DAY.

The court was densely crowded at an early hour.

THEODORE BURDETT, examined by Mr. Dwight, deposed, that he is a policeman belonging to the harbor police; I found a boat about seven o'clock on Thursday, the 22d of March, the day after the sloop was brought up to the city; I found the boat fifty yards to the southward of Fort Richmond; Hickbert and Gresler (the two witnesses) gave me information where I could find the boat; I saw the hostler of the fort; he gave me the oars and half an old boot, and a piece of an old stump of a broom; I went to the sloop and found Mr. Selah Howell, the owner; I showed him the boat as it lay at the slip; he claimed it, and took it away.

To the JUDGE.—This was at the police station.

SAMUEL J. CONOVER deposed—I am a watchmaker, doing business with Mr. Squire, No. 182 Bowery; I remember repairing a watch about a year ago for a person named Burr; it was on the 6th of April, a year ago; it was not Mr. Burr himself who brought it; it was left by a gentleman whom I saw in the court yesterday; the person who left it took it away I presume; it was a double case silver watch; the maker's name J. Johnson, and the number 21,310. (Looks at the watch.) This is the watch that I repaired; I do not know the guard; I don't know that I ever saw Capt. Burr.

Cross-examined.—In giving a description of the watch and its number I am aided by a record which we keep at the store; I am pretty sure I made the record before it was repaired; the record is in my handwriting. (The witness was requested to send for the record.)

HART B. WEED, recalled, deposed—That the dark hair produced is what I found in the cabin; this other (the light hair) I found forward of the mast, on the deck in a pool of blood. (Witness here selected and showed out the clothes brought from Providence in the trunk and bag.) I have now a bag in my hand in addition to the things produced yesterday; the contents were taken out of a green chest brought by the officers from Providence.

Cross-examined.—I cannot enumerate all the articles found; I did not find any jewelry; I do not know if any one took a list or description of the articles.

Re-direct examination.—I now recollect that I found the daguerreotype produced yesterday (of a young lady) in the breast pocket of this coat, (a dark frock coat).

HENRY SEAMAN deposed—I reside in Brooklyn; I was acquainted with Capt. Burr for fourteen or fifteen years; I saw him on the Tuesday before he left; I know Capt. Burr's watch; I had it in my hand on the Tuesday; it was at my house, and he (Capt. Burr) took it away that evening; I recollect leaving Capt. Burr's watch to be repaired at some store in the Bowery, a year ago last April; I did not go after it again; I know it by its general appearance, and by the guard, and the way the guard is knotted; I knew the sloop Johnson, and its yawl boat; I saw the yawl boat at the police station after the sloop had been towed in to the city; it was on the 22d or 23d of March last; saw the yawl boat on the sloop the time she was here before the last trip; I do not know the prisoner; Captain Burr was a man of about five feet seven or five feet eight inches in height. I found the ship's papers in the cabin, at the head of the captain's berth; I gave them to Captain Weed, of the Second Ward station; I knew the Watts boys; Oliver was about five feet nine or ten, and weighed about 180 or 185 pounds; he was the light-haired one; Smith Watts was taller, and weighed about 175 pounds; I do not know Smith Watts' writing.

Cross-examined.—I had the watch in my hand probably fifteen or twenty minutes; it was on the Tuesday before the Thursday that he sailed; I don't think I said before the Commissioner that it was the Tuesday week before he sailed; I do not know why I took the watch in my hand; I had no idea that I should be called on to identify it; I left it at Mr. Squire's store to be repaired; I did not go for the watch; I remember the number of the watch, 21,310; the number was marked down on the boom of my cart by Captain Burr when he gave it to me at foot of Spring street; I did not state that fact before; I have since sold the cart; Captain Burr's wife and my wife are sisters.

To Mr. DWIGHT—Captain Burr carried the watch for four or five years.

Mr. CONOVER—(recalled and produces the record).—It is as follows:

MR. BURR

D. B. Silver watch,

J. Johnson, Liverpool, 21,310.

Dld.

To prisoner's counsel.—I can't say to whom I delivered the watch; my impression is that I delivered it to the gentleman who left it, but I am not certain; it was there about a week.

CATHERINE DICKERSON, a girl about seventeen years of age, deposed: I knew Oliver Watts; I saw him last on the Tuesday of the week he sailed; I do not know the date; I gave him my daguerreotype.

Mr. GRAVES objected to this testimony.

The COURT said he deemed the evidence was proper and important; it had been proved that a daguerreotype was found in a coat, and if the prosecution can prove that that coat belonged to young Watts, and that this is the daguerreotype this witness gave him, it will go far to connect the prisoner with the transaction on board that sloop. The Court thought the evidence not only eminently proper, but very material and important testimony.

Witness continued.—When I gave him the daguerreotype he put it in his coat pocket; I saw that coat since in the District Attorney's office (coat produced in which Captain Weed found the daguerreotype); I think this is his coat and this the pocket he put it in; he then jumped into the cars (daguerreotype produced); this is the same one I gave him; I don't remember any of the other clothes of Oliver but the coat.

Cross-examined.—The coat was shown me in the District Attorney's office; they showed me one coat and asked me if it was Oliver's, and I said not; they then showed me the other, and I said it was Oliver's; I identify it from the yellow lining in the sleeves, and the cloth being worn off the button; it was on the sidewalk, right by the cars, I gave Oliver my daguerreotype.

HARRIET ROBINSON (mother of the last witness)—My former husband's name was Dickerson; I knew Oliver Watts for three or four years; he used to stay at my house when home from sea; he had not all his clothes when at my house last; he had a pair of pants which he took away with him; he wore on that Tuesday his best coat; I should suppose this (the coat in which Captain Weed found the daguerreotype) to be the coat; I know it from the lining, etc.; he said he gave \$16 for it; the other I think was his every day coat.

Cross-examined.—Nothing material elicited.

ABBEY HUBBARD deposed—My first husband's name was Watts; I am the mother of Smith Watts; the last time I saw him was on the 7th of March; he started to go with Captain Burr to Virginia (identifies a portion of the clothes belonging to her son, Smith Watts); I patched this shirt myself; this bag has the initials of my present husband, Lorenzo Hubbard, on it; I put my son's clothes in it that morning myself; I knew the shirts; I cut them myself, and had them sewed; he was very large, and could not get shirts to fit him; I cut them in the old fashioned way myself; I have had no tidings of him since, only that I suppose he was murdered. (Sensation in court.)

Cross-examined.—I reside at Islip; I am not any relation of Captain Burr's family, but I was acquainted with him for fourteen or fifteen years.

Re-direct examination.—Witness exhibited further signs in stitches and patches, by which she positively identified her son Smith Watts' shirt; the pantaloons have a new pocket, which I put in, as he had worn out the other one; all those things that I have identified my son took away with him in the bag which has my husband's initials on it.

The cross-examination was a mere repetition of her direct testimony.

To Mr. DWIGHT—(Handkerchief produced by officer Nivens, shown to witness)—This was Smith Watts' handkerchief; I have washed and done it up for him for two years, and never saw one like it.

Mrs. HUBBARD, who gave her testimony clearly, and maintained her self-possession on the witness stand, burst into tears, and continued to weep for some time after she retired from the body of the court.

DIDEME BURR (the widow of Captain Burr, dressed in deep mourning) was called to the stand and deposed—My husband, Captain George H. Burr, left home on the 8th of March last; I have never received any tidings of him since, save in connection with this affair; I think I should know his watch from the case and its general appearance, and by the guard (watch handed to Mrs. Burr); this is the same kind of a case; I should say it is the same watch; he carried it some nine years, as near as I can say; (ship's articles produced) I think the filling up in this paper is in my husband's handwriting; I saw some of his clothes in the Second Ward station-house; (Kossuth hat produced) he had a hat like this, which he wore from home; this was his shirt; he took this from home with him; I know it by a piece across it, which he put in himself, on board the sloop; those pantaloons I think were his; the suspenders are precisely like those he had on when he

went away; he had a vest the same cut and color of this produced; he did not have it home with him the last time; I could not say positively, but I think it is his; this black handkerchief was his; I hemmed it myself.

Cross-examined.—My husband had more than one coat; he often bought clothes, and brought them on board the sloop; I first identified these clothes at the station-house.

Mr. DWIGHT said that these were all the witnesses for the prosecution, with the exception of Captain Nickerson, of the brig which had had the collision with the sloop E. A. Johnson. He had been telegraphed to Boston, and as he was a willing witness, they expected him by every arrival. He sails between Philadelphia and Boston, and it may be possible that he (Captain Nickerson) had been detained at sea.

The counsel for the defence intimated that their testimony would not occupy much time, and they would probably close to-morrow. They preferred, however, that the prosecution should exhaust their case first.

The Judge said he would allow a reasonable time for the appearance of Captain Nickerson.

Mr. DWIGHT said that Mrs. Hubbard wished to correct her testimony as to date.

Mrs. HUBBARD again took the witness stand, and said that she saw her son, Smith Watts, last on the 13th of March, Tuesday, and not on the 7th; she was confused when she first came up, and made a mistake as to the date.

The Court then adjourned to ten o'clock on Friday morning.

FOURTH DAY.

CATHERINE DICKERSON, recalled by the prosecution, deposed—I have had hair from Oliver Watts in my possession; it was in his daguerreotype which I gave to someone in the station-house; this daguerreotype and hair now handed to me are the same; I knew this to be Oliver's hair because I cut it off myself.

The daguerreotype and hair of Oliver Watts were submitted to the jury to compare with the hair found in the blood on the deck of the sloop.

Captain WEED recalled by the District Attorney, and deposed—I received from the last witness (Miss Dickerson) a daguerreotype and some hair, which I have with me.

Q. Will you give it to the person that you received it from?

(The captain here handed the hair and daguerreotype to Miss Dickerson.)

Miss DICKERSON, being further examined, said—That is the daguerreotype that I spoke of; that is the hair of Oliver Watts which I received from him.

To the COURT.—I can tell the hair by the color of it; I cut it off myself; I put it in the daguerreotype; his likeness was taken at the same time as mine was—on the Tuesday before he sailed; the daguerreotype that I now hold in my hand is that of Oliver Watts; I think I cut that lock of hair from his head about six months ago from the present time.

GEORGE WASHBURN, of the second precinct police, stated that he took some rigging from the J. R. Mather, and fitted it to the broken bowsprit of the E. A. Johnson; it compared exactly with what was still left on the bow of the vessel; the schooner Mather was said to have come in collision with the E. A. Johnson.

Mr. HUNT, Assistant District Attorney, stated that the government had no further testimony to offer with the exception of that of Captain Nickerson, which he deemed highly important and material. He thought that the reading of the testimony of Mr. Nickerson taken before the Commissioner, would be sufficient, if assented to by the other side.

Mr. GRAVES requested a short adjournment for the purpose of reading the testimony of Mr. Nickerson, and consulting with his associates as to the proper course to be pursued.

The COURT said that this was a matter purely for counsel to consider, and one with which he would not interfere. He would accede to the request of defendant's counsel, and adjourn the Court till twelve o'clock.

The COURT then took a recess. On reassembling,

Mr. GRAVES desired to state that they had not been able to agree with the counsel for the government as to the evidence of Captain Nickerson.

Mr. HUNT said—My opinion is that the testimony of Captain Nickerson is material, and of sufficient importance to authorize us in asking the Court for an adjournment of the case until to-morrow.

Mr. GRAVES would like to know if the Court intended to limit counsel in their address to the jury.

The COURT said—In a case of this kind I am not disposed to limit you in your rights to your client, or the government in their right toward the prosecution.

The JUDGE, in addressing the District Attorney, said—Mr. Hunt, it must be a very strong case, indeed, that will induce the Court to grant any further delay for this witness. I will adjourn till to-morrow morning at ten o'clock, and the case must then proceed, unless some imperative reason is shown to the Court why it should not.

After the usual caution to the jury, the Court adjourned.

FIFTH DAY.

At the meeting of the court this morning, some delay was occasioned by the absence of the leading counsel for the prisoner.

Mr. SAYLES, junior counsel for the prisoner, said—May it please the Court, my associate, Mr. Graves, is not present. I have learned that he went to Twenty-seventh street to see his uncle last night, and I have not seen him since. I would therefore ask a short delay.

The COURT.—There may have been some accident; you had better send and inquire. The Court will wait a few minutes.

Mr. C. H. Hunt, the Assistant District Attorney, said, if the Court please, this will not, of course, prevent our doing all we proposed to do. We have to inform the Court that Capt. Nickerson, whose testimony we were anxious to obtain, has not arrived, and we do not suppose we shall have his testimony to-day. It is proper I should state, also, that we have never regarded his testimony as indispensable in any sense, for if we had we would not have consented to proceed with the trial without his being present. We have, however, regarded his testimony as very important, as giving completeness to the chain of facts which we had it in our power to present to the Court and jury; and in this view of the case perhaps we were anxious that the testimony should not be submitted on the part of the government without that link in the chain; and we were desirous of doing what, as I understand it, is the duty of the government, of presenting all the facts that it is in our power to present, before calling upon the prisoner for his defence. These are the reasons which influenced the prosecution in asking for the delay which has been granted; and we now feel that we have done all we could to procure this testimony, in order to give the evidence such completeness as is in our power, and we do not now feel like asking the Court for any further delay in order to procure the testimony of Capt. Nickerson. We are obliged to the Court for granting the delay asked for yesterday, and we now, under the circumstances, rest the case on the part of the government, and leave the evidence for the prosecution as it now stands.

The COURT.—It appears that Mr. Graves, the senior counsel for the prisoner, is not in attendance, and for some reason probably for which he is

not responsible. The Court will wait a reasonable time for him.

EX-Judge ROOSEVELT, United States District Attorney, said—During this short interval I should remark, in addition to what has been said by Mr. Hunt, that upon looking over this case, although I took no part in it in open court, that the prosecution came to the conclusion that this testimony was entirely unnecessary, though relevant; and the only reason why any delay should have been asked, and the only reason why any delay should have been granted, was to follow out the usage founded on good sense and on humanity—that usage which has been regarded, not by strict law, but by a species of courtesy, that the government, being the stronger party, should not, at the outset, take sides, as it were, but develop the entire case, whether they lay before the court items which may be deemed by them not to be very important, because it might so happen to the mind of the court and the minds of the jurors, that those items, which we might deem not important, should seem to be very necessary to make out the case. I did not consider the testimony of Captain Nickerson in any other light than in completing the history of the case. On the other side, they had a right to object to the introduction of what Captain Nickerson had sworn to before the commissioner, and it was perfectly proper they should do so, unless the evidence was introduced in the regular way. On our part we have endeavored to do our full duty to the court, to the prisoner, and to the public. We have tried to give every element, every item of evidence in the case that had the slightest bearing upon it; and I would now say, to avoid any misapprehension, that it does not arise from any idea of the weakness of the case by any means; but it is to fill out, if possible, the usage of the courts in criminal cases. But we are unable to procure this witness; he probably is on the ocean now, for he sailed from Philadelphia for Boston last week, and is now at sea. If, however, he should arrive in the course of the day, it will be for the court to say whether it will take his testimony or not, and for the prisoner's counsel as to whether they will object to it or not.

The COURT.—It appears to me that this is a proper view of the case taken by the United States Attorney. It is the duty of the government, especially in a case of high crime—such a case as the prisoner is charged with—to lay before the court and jury all the evidence they have in their power, or that they are cognizant of, which has any connection with or bearing on the case; and, as the court intimated yesterday, whatever may be its opinions in relation to the necessity of the evidence, such as Captain Nickerson's might

be, it would be very improper for the court to intimate it at this stage of the trial.

Mr. SAYLES (prisoner's counsel).—I experienced some reluctance in asking the court a further delay for the purpose of this trial. It has already been delayed, on the part of the government, for an entire day. I would, however, on the present occasion, ask the court to take a recess until twelve o'clock, to accommodate the defendant, in order that I may ascertain where my partner is, or that I may procure counsel to associate with me. Mr. Graves went last evening to see his uncle in Twenty-seventh street, and I have not seen or heard of him. I would say, in addition, that Mr. Graves has my brief in his possession.

The JUDGE said that the Court was very indulgent to both sides, in consequence of the importance of the case, both to the public and the prisoner, and although he is very anxious to dispose of the case as soon as practicable, yet he would grant a delay until twelve o'clock.

On the reassembling of the Court, Mr. Sayles said he expected his associate every minute, and he desired to consult with him as to the production of witnesses. He would now call Mr. Commissioner White as to the testimony of a witness named Downes, in describing the position of the sloop.

KENNETH G. WHITE, United States Commissioner, called and examined by Mr. Sayles, deposed—My impression is that a witness named Downes was before me on the preliminary examination; I cannot recollect the particulars of his testimony without referring to my minutes. (Minutes produced.) I do not see in my minutes any designation made by Mr. Downes as to where the vessel was; there are two marks on the chart, one of which was made by Mr. Downes in court.

EDWARD BARNES, called for defence, deposed—He resides in Keyport; knew Capt. Burr; gave him \$100 for oysters; this was on the 15th of March; I gave him the money in quarters and halves, and ten and five cent pieces; I do not know what amount of money he had with him; he told me Mr. Simmons gave him \$200.

The COURT said that was not evidence.

He put it in a bag; it made the bag about half full; I cannot identify the bag.

Mr. SAYLES then said they had no other witness for the defence, and he then proceeded to address the Court and jury on behalf of the prisoner. He commenced by describing the sensation created in this city by the intelligence of this transaction, and that the public press had given a description of and directed the eye of the community to this one man. He then suggested that this tragedy may have been perpetrated by river thieves who have been driven to the lower bay by the Harbor Police, and who, perhaps, committed a similar one on another sloop on the same night. Counsel said, in cases of admiralty this court had a limited and special jurisdiction, derived from the laws of Congress passed under the Constitution of our country, which gives power to define and punish felony and piracy on the high seas. This court, therefore, had so much power, and no more. It had no common law jurisdiction. (He then cited several authorities.) He claimed that a portion of that act of Congress was unconstitutional; that Congress had no right to define and punish felonies on the high seas; it has no power to take away the rights of individual States to punish the crime for which this man stands charged. It was committed beyond the jurisdiction of the court, and it had no power to punish for this felony. He then read a reported case where an act of piracy had been committed in Boston harbor, and in which it was held that it should be tried in the courts of that State.

The COURT remarked that this was not a question for the jury, but should have been raised on demurrer, or might be brought up on a motion in arrest of judgment.

Mr. SAYLES submitted that the jury were the judges of the law and the facts.

The COURT.—Not on questions of jurisdiction. Those questions are always for the Court—for its decision.

Mr. SAYLES contended that “on the high seas” meant either in the harbor of some foreign country, or beyond any portion of a coast where the sea ebbs and flows.

The COURT remarked that this was the opinion of English lawyers, but did not apply to American laws.

Mr. SAYLES said—We have adopted the English common law.

The COURT.—Only to a limited extent.

Mr. SAYLES then cited from "Chitty's Criminal Law," vol. iii., which says, "that the piracy must be distinctly proved to have been committed on the high seas, or the defendant is entitled to an acquittal." According to that law the admiralty had no jurisdiction within the limits of any county or city. The counsel then proceeded to appeal to the reason of the jury, and lay the facts before them. It was a case of great importance, not only to the federal government and to the community, but also to the unfortunate prisoner at the bar, and he called upon the jury to elevate their minds above outside prejudices. A supposed tragedy had been committed in the lower bay, and the government had undertaken to show, by circumstantial evidence, that this is the man who perpetrated it. Counsel referred to the nature of circumstantial evidence, and alluded to the recent case in this court, where some half dozen witnesses swore positively to a man named Williams for post-office robbery, and subsequently swore as positively against another man, who was convicted.

Mr. HUNT, in reply, directed the court in support of the jurisdiction of the United States courts over the lower bay.

Mr. GRAVES, for the defence, referred to the case of the two Bournes, in Vermont, who confessed to the crime of murder, but were afterward proved to be innocent. The evidence against Hicks was entirely circumstantial, and of such a character as to render it very uncertain; but the most astonishing thing about the prosecution was the charge that this one man should kill these three men, powerful as they were, and not receive a single scratch. There must have been a terrible struggle; blood was spattered over the ceiling, blood everywhere, but no blood on him, no mark of violence on his person.

Mr. HUNT remarked that the only questions of law upon which there had been any dispute, were ruled upon by the Court, and he had nothing further to say.

Mr. DWIGHT then proceeded to sum up on the part of the government. He had hoped that there might have been some chance of the innocence of the prisoner found in the course of the trial. But he had been disappointed; nothing which had been asserted by the witnesses for the prosecution had been contradicted. No attempt had been made to break any one link in the chain of the evidence. The defence would endeavor to induce the jury to believe that Capt. Burr parted with his watch, which he had carried for nine

years, to a pawnbroker; that Smith Watts had parted with the clothes which his aged mother had put up for him; that Oliver Watts had parted with the daguerreotype of the girl he loved. The time had not yet come when Yankee sailor boys gave up the pictures of “the girls they left behind them” without a struggle. Mr. Dwight then clearly and concisely reviewed the whole case and the testimony, giving a painful but graphic description of that dread night when this triple deed of blood was perpetrated, and concluded thus: Gentlemen, I have occupied your time longer than I intended, and I have but one word further to say. If this prisoner is not proven guilty of the crime against him, he is of course an innocent man. If there is in the breast of any of you one doubt concerning his guilt—one reasonable doubt as to his having committed this robbery of George H. Burr, as set forth in the indictment, in God’s name give him the benefit of that doubt. It is his sacred privilege, and it is just as much his right as he has a right to his life or his liberty. If you have any doubt upon considering the evidence, give him the benefit of that doubt, or any which you may have. But, gentlemen, if through the five days of this trial there has crept into your minds a conviction that he is the man, and if that conviction has been strengthened by the evidence which has been adduced and placed before you—that no other but he had committed this crime, then I say that his conviction is the property of the government, and I charge you to give it to the government. Here, in your seats, where you have sat during these five days listening to the opening and the testimony, and the closing upon the part of the government—here, in your very seats, I charge you to give the benefit of your conviction to the government, and I charge you to do this in your jury box without any hesitation. Gentlemen, there was no hesitation on his part; with that sharp axe he cut down the fair-haired boy, Watts; and then returned and felled the other: and then the death struggle with the captain occurred. Gentlemen, there was no hesitation there; and if you are convinced of his guilt, let there be no hesitation in your rendering in your jury box a verdict against him. There cries from the sands of Islip, “justice;” from that widow and from that mother. There comes up from the depths of the Atlantic, “from all the ships that float on it, and all that go down in the great deep”—there comes the cry of “justice.” The prisoner equally calls upon you to do justice; and gentlemen, I ask you, in the name of the government, if you believe him guilty of this crime, which he committed

speedily, summarily and devilishly, that you will let your verdict be speedy, summary and just.

During the whole of Mr. DWIGHT'S address, which occupied nearly an hour, the prisoner was still unmoved; he never winced, but coolly twisted and turned a pen in his hand, pointing it to the table, and scarcely once looked up.

JUDGE SMALLEY said it was now past four o'clock, and he desired to look into some authorities which had been referred to; he would not charge the jury until morning.

The COURT then adjourned to Saturday morning, at ten o'clock. The prisoner was removed, in irons, by Deputy Marshals De Angelis and Dugan, who had special charge of him, and who kept a sharp watch that he should have no means of suicidal death at hand, nor make any effectual effort to escape.

The court-room was, as it had been every day during this extraordinary trial, densely crowded.

SIXTH DAY.

THE VERDICT.

JUDGE SMALLEY charged the jury. He instructed them that the case was clearly within the jurisdiction of the Court, the occurrence having taken place in the harbor. The jury retired at 10:36, and after having been out seven minutes, returned and announced that they had agreed upon a verdict. The prisoner was directed to stand up, which he did readily, exhibiting little or no emotion. In a scarcely audible voice the foreman then announced that the jury found him GUILTY of the crime with which he was charged. Hicks appeared to be somewhat stupefied by the announcement, but resumed his seat again when the counsel told him to. The Court then remanded him for sentence, and he quietly held out his hands for the handcuffs. His counsel, Mr. Eagles, then asked the Court to set some time in which to make a motion for arrest of judgment. Judge Smalley designated 10 A.M. on Wednesday as the time for making such motion. Hicks was then conducted back to the Tombs by the officers having him in charge.

A motion for a new trial was afterward argued and denied. Immediately after decision, the sentence of DEATH was passed upon him, the day fixed for his execution being FRIDAY, the 13th of July, on BEDLOE'S ISLAND.

THE CONFESSION OF ALBERT W. HICKS, PIRATE AND MURDERER.

OFFICE U. S. MARSHAL, *Southern District of New York.*

I hereby certify that the within Confession of ALBERT W. HICKS was made by him to me, and that it is the only confession made by him.

LORENZO DE ANGELIS, *Deputy U. S. Marshal.*

July 9, 1860.

After his sentence, Hicks seemed to lose that firmness which he had hitherto manifested. His reckless indifference left him, and in place of the stolid look which had marked his face from the time of his arrest, an appearance of deep anxiety gave token that he had abandoned the hope which had supported him, and that dread of his approaching fate, if not remorse for his crimes, had taken possession of him.

He seemed to dread being left alone, and often besought his keeper and the warden of the prison to keep him company in his cell. He was frequently found in tears, and on being questioned as to the cause of his grief, expressed a deep anxiety in regard to the future of his wife and child, about fifteen months old.

He was often begged to make a free confession of his crimes, and though at first he stoutly denied having anything to confess, he at last sent for Mr. De Angelis, and offered not only to confess the crime of which he stood convicted, but also to give a history of his whole life in detail, from his childhood up to the time of his arrest, on condition that the confession should not be published until the day of his execution, and that all the proceeds arising from its sale should be given to his wife.

This was agreed to by Mr. De Angelis, and accordingly, on the 13th of June, that gentleman, accompanied by an amanuensis, visited Hicks in his cell, and there listened to his confession, which is given below in the precise order in which he related it, though not in his own words, his command of language being exceedingly limited. The true spirit of the narrative is strictly preserved, however, and wild, monstrous, and terrible as the details are, there is no doubt of their truth.

After Mr. De Angelis and the amanuensis had taken seats, Hicks being seated upon his iron bedstead, proceeded as follows:

I can stand it no longer. I had hoped that I should carry the secrets of my life with me to my grave. I never thought that I should sit here in my cell crying like a baby, over the remembrance of the past, or that my heart would flinch at meeting any fate in store for me.

I fancied I bore a charmed life, and that having heretofore escaped so many dangers, I should find some loop-hole through which to creep now, or that something would turn up in my favor which would lead to my escape from the mesh into which I had fallen.

I have long felt as though I were the Devil's own, and that though he had served me so many years, I must at last be his; yet I imagined he would not claim me yet, but allow me to do his work for a time longer. He has stood by me all my life, on ship and on shore, amid the howling storms of the ocean, where every moment the waves threatened to engulf me; he has snatched me from their deadly embrace on the battle-field, in many a hand-to-hand fight; he has seemed to stand by my side protecting me from danger; and when I have been in the hands of my enemies, and escape has appeared impossible, he has, until now, invariably opened the way for my release. But at last he has deserted me; in vain I call upon him, he will not answer me; and I dare not call on God, for what pity should he show a guilty wretch like me?

For years conscience has slumbered; I have not heard her voice at all. No deed of desperation has seemed to me too desperate; no crime has seemed too dark or bloody. My soul seemed dead to all remorse or dread, and fear has been a feeling which, until now, I have never known.

But in this lonely cell, away from all the excitements which have always been the support of my restless nature—within these solemn walls, where I see none but those who guard me, or those come to look at me, as upon

some wild beast; here, where no sounds fall upon my ear but the footsteps of the keeper, as he paces with measured tread the long corridor outside, or harsh, discordant clank of heavy doors slamming, or the grating of bolts and the creaking of hinges—conscience, so long dead, has at last awakened, and now stings me with anguish, and fills my soul with dread and horror.

I look back upon my way of life, and see the path marked with blood and crime, and in the still midnight, if I sleep, I act the dreadful scenes anew. Again I imbrue my hand in the red blood of my victims; again I rob the unsuspecting traveller, or violate the most sacred sanctities of life, to satisfy my greed of gold, or headstrong, unchecked passions; and if I wake, I seem to see my victims glaring at me through the gloom of my cell, or hear them shriek aloud for vengeance on my guilty head.

The past is one great horror! The future one dread fear. A heavy, insupportable weight is on my heart, and I feel as if, did I not reveal its fearful secrets, I should go mad.

But I have resisted the impulse until now, and would die and tell no tales, but that the history of my life may serve as a warning to mankind, and may benefit my wife, perhaps, though it will make her bow her head in deep shame over the crimes of him who is the father of her child.

I feel that after I have unburdened myself of the secrets of my life, I can die easier, and meet my fate like a man; and though I may go to the gallows without hope, without repentance, without any evidence of aught but misery hereafter, the thought that the sale of this, my Confession, will perhaps keep the mother of my child from dependence on such cold charity as the world would show a murderer's wife, will make me stronger to bear the inevitable doom which is now awaiting me.

For my own sake I would not have done this; but for the sake of her whose fate I have linked in life to mine, and for the sake of the poor little child, who I trust will never know who was its father, I give to the world the wretched

STORY OF MY LIFE.

I was born about the year 1820, in the town of Foster, State of Rhode Island.

My father was a farmer, and had seven sons, of whom I was the youngest but one.

I worked on the farm until I was fifteen years of age, and though I had opportunities of receiving the benefit of public instruction, I never attended school, or profited by the advantages offered me to improve my condition in life by any honest or legitimate means.

I was naturally of a wild, restless, reckless disposition, fonder of wandering about the fields, or lounging by the brook side, than following habits of industry, and among my companions was noted for my headstrong, imperious manner, and was always foremost in all youthful frolics and scrapes, never feeling satisfied unless I could outdo my companions in any enterprise of fun or mischief.

My only ambition was to be rich; but I had no desire to acquire riches in the plodding way in which our neighbors went through life; my dream was to become suddenly rich by some bold stroke, and then to give free reins to the passions and desires which governed me.

I never, even as a boy, hoarded money. I did not care for the mere possession of it. It was only valuable to me as the means of gratifying my passions.

I used to wish that I could find the pots of gold and silver which rumor said had been buried in our neighborhood by pirates and robbers, and used to listen with rapt attention to stories of pirates, robbers, highwaymen, etc., which my companions used sometimes to relate.

My father compelled me to work, and though I had no taste for it, when once in the field my ambition to excel always brought me out first at the end of the row or swath, and having some mechanical skill, I was often called upon to do jobs about the farm which saved calling upon the wheelwright or carpenter.

But by the time I was fifteen years of age I grew tired of the monotonous life I had been leading, and my desire to roam and see the world, and seek my fortune, took entire possession of me; so I began making my preparations to run away. I got together a small sum of money, by hook and by crook; and one night, after all were asleep, I stealthily left the house, and took the road to Providence, from whence I proceeded to Norwich, Conn.

Here I took the first important step in that career of crime which has made me a prisoner in this cell, and which will lead me eventually to the gallows.

After arriving at Norwich, I wandered about, seeking not employment, but some means of gratifying my desire for money in an easier way; and during the day I strayed into the railroad depot, where I observed a number of trunks, packages of goods, etc., a part of which I determined to appropriate to myself. I hung about the depot until night, and then watching my opportunity, I seized a package of goods; and leaving the depot in all haste, made my way outside of the town to some woods, where I examined the package, which contained laces and silks. I secreted some of the things about me; and, not knowing any one to whom I could dispose of them there, I determined to go back home, which I reached in the course of a few days.

My parents were very angry with me, and tried to learn where I had been; but I kept a still tongue, and sold the goods secretly to a peddler who stopped at the house.

But the goods were missed, and, as I had been seen prowling about the railroad station, suspicion naturally fell on me; and the officers having no difficulty in getting on my track, I was followed and arrested one night at my father's house, after I had been in bed some time.

I was fast asleep; the officers awoke me, and putting a pair of handcuffs on me, carried me back with them to Norwich, where I was tried and sentenced to a year and six months' imprisonment in the Norwich jail.

I remained in confinement about three months, when I managed to make my escape, and went to Lowerpart, Gloucester, Rhode Island, where I went to work on a farm. But my whereabouts was discovered, and in six weeks from the time of my escape I was re-arrested and taken back to Norwich jail, and put to work in the quarries, with a ball and chain fastened to my leg.

I had been at work a month in this way, when one day, by means of a stone hammer and chisel, I broke the chain from my leg, and running off, made for the woods, pursued for some miles by a strong party of officers.

I took refuge in a house by the roadside, and had the satisfaction of seeing them go by at full speed, supposing me to be still ahead of them.

As soon as they had passed, I left the house and took to the woods, where I remained hid in some bushes until night, when I came out and took the road to Providence.

Early the next morning I was stopped on the way by a man on horseback, who knew me to be an escaped convict by the clothes I wore, not having had an opportunity of changing them.

As soon as I saw him, I made for the woods by the side of the road. He dismounted and followed me, and, being a good runner, had nearly overtaken me, when I turned and stood at bay.

We had a long and terrible struggle in the mud and water of the swamp, he all the time shouting at the top of his voice for assistance, which brought the neighbors to his aid before I could effect my determination to kill him, which I had fully made up my mind to do rather than allow myself to be taken.

I was, of course, overpowered by numbers, and after being safely bound, was reconducted back to Norwich, where I was punished and kept in close solitary confinement for more than a year.

During this confinement, it seemed as if every wicked quality of my mind was brought out in full activity. I used to sit and plan all sorts of desperate schemes, and a feeling of the most unquenchable vengeance took possession of me. For I fancied myself persecuted, wronged and ill-treated; I imagined the world had declared war against me, and I determined, as soon as my term of imprisonment should expire, to war in turn upon the world.

At last the long wished for end of my imprisonment came, and I was discharged. Swearing vengeance against the whole human race, I left the jail and went back to my father's house, where I remained for a short time and then went to Lower Gloucester, where I went to work in a shoe manufactory, having learned that trade during my confinement in the Norwich jail.

But this hum-drum sort of life was little suited to me, and besides, I felt so incensed against mankind that I found it impossible to restrain my thirst for vengeance on society for the fancied wrongs it had done me, so I resolved to go again out into the world; and going to Providence, an old shipping master, by the name of Chittel, shipped me on board the whaleship Philip Tabb, bound to the northwest coast of America. The ship belonged to Warren, R. I., where I joined her in the course of a few days.

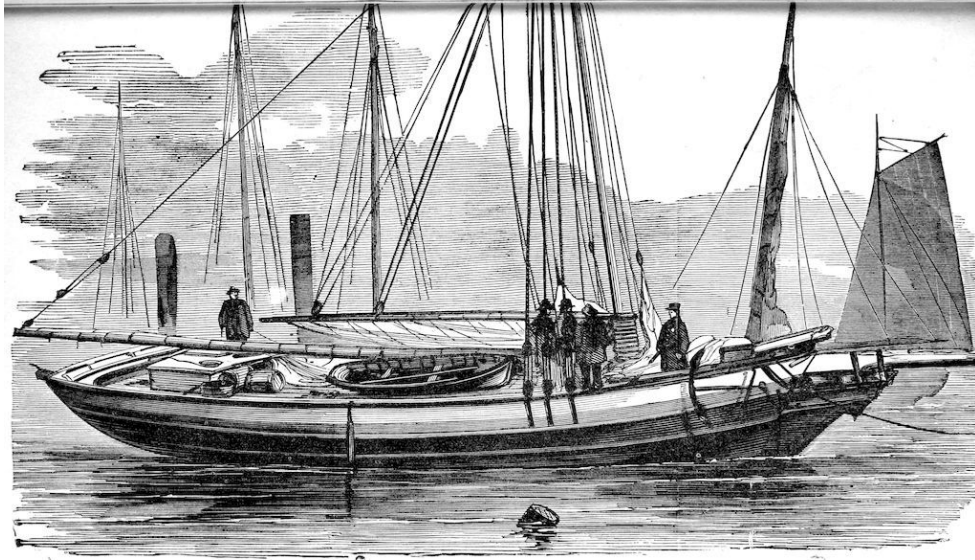
I no sooner got on board than I began to make mischief among the crew, among whom I got up a series of rows and fights. I gratified my wicked and evil propensities with a total disregard of consequences either to them or myself. I had no fear, nor did I care for anybody or anything.

The captain was in a great hurry to sail, and not wishing that he should for a few days, when we reached Newport I incited a mutiny, which resulted in a fight, in which the mutineers got the worst of it, and two men were sent ashore in irons.

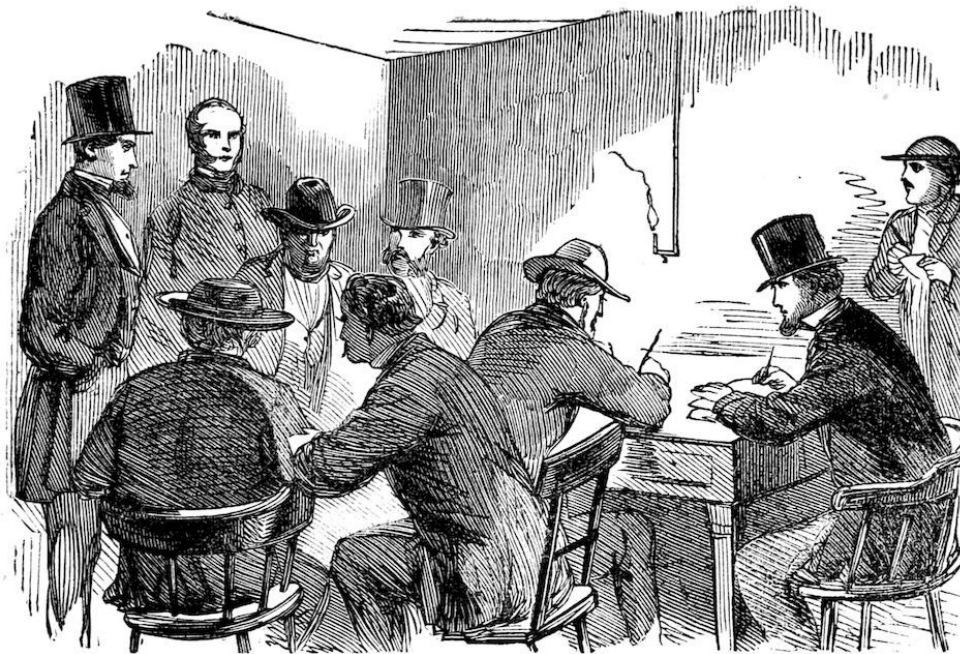
The captain thinking that he had rid himself of the ring-leaders—although the men sent ashore were really the most innocent of the crew—again set sail and proceeded on the cruise.

For a few weeks everything went on smoothly enough, but in a short time I succeeded in sowing dissatisfaction among the crew, which in the end led to another mutiny; my idea being, if possible, to get possession of the ship.

The captain and mates tried first to quiet the men by fair words, but failing by these means to get them to resume their work, they armed themselves, and a hard and desperate fight took place in which the captain and first and second mates were very badly cut with knives and axes. The mutineers were, however, again subdued, and two of them were put in irons. I played my cards so well, that notwithstanding I had incited the whole affair, and was in all respects responsible for it, the captain did not suspect the part I had taken, and I escaped unpunished.



MYSTERIOUS MURDER—THE SLOOP E. A. JOHNSON, ON BOARD OF WHICH IT IS SUPPOSED A BRUTAL MURDER HAS BEEN PERPETRATED.



DETECTIVE NEVINS DESCRIBING THE MURDERER'S ARREST TO THE REPORTERS.



THE PEOPLE OF NEW LONDON, MAKING AN ATTEMPT TO LYNCH
THE MURDERER.

When we arrived at Wahoo, Sandwich Islands, the mutineers who had been put in irons, were whipped with the cat, on board ship, till they were nearly dead. While we remained in port, the captain thinking to gain the good will of the crew, permitted us to go on shore nearly every day, and the men would have been well disposed toward him if I had not continually poisoned their minds against him.

While on shore I engaged in every kind of wickedness; I robbed and beat the natives, and was finally taken by the authorities and locked up until the vessel was ready for sea.

I imagined that I had been arrested at the instigation of the captain, and I determined that as soon as we were once more in blue water, I would be revenged upon him for it, but no opportunity occurred before we reached our cruising ground, where we only took one whale, and were then obliged to put back to Wahoo for repairs, the ship being leaky.

On our way back, one of the boat-steerers having been observed in conversation with me by the captain, was questioned in relation to the subject of it, which he refused to disclose. The captain then commenced to abuse the boat-steerer, and from words they soon came to blows. The boat-steerer, who was more than a match for the captain, would have

overpowered him, but that the first mate interfered. He no sooner did so, than seizing a belaying-pin, I felled him to the deck, and the other officers coming up, a general fight took place.

The boat-steerer and myself succeeded in giving them a severe beating, and had complete possession of the ship, for the rest of the crew were afraid of us, and did not dare, even if they had been disposed, to take sides with the officers, whom we drove below, with the exception of the first mate, who still lay insensible upon the deck.

After this, the boat-steerer and myself held a consultation, and had we been navigators, which we were not, it being our first voyage, or had we even known where we were, or what course to sail, we should have murdered all the officers, and taken the ship.

Two days afterward, on coming on deck, we found the ship was approaching land, and a number of vessels in sight, which forced us to alter our plans. So we released the officers, who brought the ship to anchor in the harbor of Owahie, S. I., where we remained about a week, none of the crew being allowed to go on shore, and the boat-steerer and myself, knowing that while in port, and in sight of other vessels, the captain had us in his power, and could at any time have punished us, asked forgiveness, and stood upon our good behavior until we put to sea again, after repairing ship.

On our way out we touched at the Marquis Island, and then cruised a season on the whaling ground; but, not being successful, we left, and went into Typie Bay.

One day, having permission to go on shore with the boat-steerer and some of the crew, we landed on one of the islands for the purpose of procuring cocoa-nuts and wild figs, with which the place abounded.

After securing as many figs and nuts as we wanted, we were about returning to the ship, when we were attacked by the natives.

A desperate fight took place. We killed a number of the natives, and succeeded in driving off the rest, and thus having a taste for blood, and the demon in me being fully aroused, I suggested to the boat-steerer, that this would be a good time to kill the officers, and take the ship. He agreed to the proposition, and so did those who were with us, and it was arranged that as soon as we were on board, each should select his man—kill him at once, and then put to sea, steering as well as we could for the western coast of America.

There were two boats. The boat-steerer and myself being in one, with a portion of the crew, and the balance of the party in the other.

Our boat reached the ship last, and when we got on board we found the officers armed and fully prepared to receive us. It was evident we had been betrayed, and I afterward learned that one of the men in the first boat informed the captain of our intentions as soon as he arrived on board.

As soon as our feet trod the deck a bloody and desperate fight ensued, in which the officers were assisted by a portion of the crew, and they finally succeeded, though not without being severely wounded, in disarming and securing the boat-steerer and myself, and put us in double irons.

They kept us in the run of the ship until we touched at Wahoo, when we were set ashore.

We were no sooner on land than we gave free vent to all our passions and desires. There was not a day went by we did not commit a robbery, and had it been necessary we should not have hesitated to have added murder to our other crimes. At last we were taken and locked up until the ship was ready for sea again, when we were sent on board and kept in irons until we arrived at an island—the name of which I do not now remember—where we were allowed to go on shore, and got into a fight with the natives, who succeeded in driving us to our boats.

During our stay here another disturbance and mutiny was organized by me, in which the officers were disabled, and the ship having again become leaky we put back to Wahoo, where she was condemned and the crew discharged; myself and the boat-steerer making our escape to the interior to avoid the consequences of our mutinous conduct.

For a long time we led the life of freebooters, robbing and plundering wherever we went, and dissipating the proceeds of our robberies in the wildest debauchery.

At last I was taken, and, for the third time, incarcerated in the prison at Wahoo, but was released through the intercession of the captain of a Dutch ship, the Villa de Poel, of Amsterdam, who gave me a berth on board.

We sailed for the Bay of Magdalena, California, where we took a right whale, and when we had towed him along side the ship a quarrel took place between me and the mate. We had a desperate fight, but they overpowered me and put me in irons.

But the second mate and myself had previous to this opened our minds to one another, and finding we were of the same way of thinking, we became warm friends.

He was an American, a native of Boston, and he succeeded in procuring my release, and put me on as boat-steerer.

The second mate and myself finding that we should stand no chance in case of trouble, the whole crew with the exception of ourselves being Dutch, resolved to leave the ship on the first opportunity which presented itself.

We had not long to wait, for one night when we were lying to, near shore, on which a tent had been pitched, we armed ourselves with pistols and cutlasses, and taking a boat from the davits, we dropped into it quietly and went ashore, taking possession of the tent.

In the morning our absence was discovered, and a boat was sent from the ship to bring us on board, but being well armed we would not allow them to land, and they were obliged to go back. Another boat came, but we resolutely refused to go back and would not allow them to land until the captain had agreed to pay us off and give us our discharge. This, after some parleying, he consented to, and we took the ship's boat and put out into the bay, where we boarded and joined the barque Fanny, of New Bedford.

We sailed immediately for Cape St. Lucas, California, and not meeting with any success, proceeded to the Bay of St. Josephs, where we left the ship, and after the lapse of a few years, during which time I passed through a series of adventures almost too numerous to mention, and the details of which would fill a volume, we found ourselves in Lower California about the commencement of the Mexican War.

We remained here about a year, living a wild, guerrilla life, plundering all who promised anything like booty, and never hesitating to take the lives of such as resisted us or were likely to betray us. We spared neither sex nor age. How many times, during this period, I dyed my hands in human blood, I do not know. No prayers, no entreaties moved us; it seemed as if my heart was dead to every human feeling, and was a stranger to pity and every soft emotion.

Often at midnight, when all nature slept, and none were abroad save the wild beasts and we wilder men—the former not so much to be feared as we, nor yet so cruel—for while they only sought their natural prey, in obedience

to a natural instinct, we preyed upon our fellow men, in violation of every natural sentiment—I say, often at the dead hour of the night have I and my companion stealthily approached some house, previously selected for our purpose, and breaking in upon the fancied security of the inmates, killed them as they slept.

The old man, whose grey hairs glistened in the moonlight, and whose venerable presence might have touched any hearts but ours; the little children, locked in each other's arms, dreaming of butterflies and flowers and singing birds; the young man and the just budding woman, the fond wife and the doting husband, all fell beneath my murderous hand, or were made the shrieking victims of my unholy passion first, and then slaughtered like cattle.

During this time my gains were large, but we squandered all our money in the various towns in gambling, drinking, and with prostitutes, never once feeling remorse for what we had done, but ever ready for some new deed of horror the moment the proceeds of our last crime were spent.

Cunning and shrewd as we were, however, suspicion at last fell upon us, and we were obliged to leave the country. While we were waiting on the coast for an opportunity, the U. S. store-ship Southampton came into port; we shipped on board of her and went to Monterey, Santa Cruz Bay.

Having accomplished my object in escaping from the scene of my late depredations, and having arrived at a place where neither my past life was known nor my present purposes suspected, I resolved to leave the Southampton at the earliest possible moment; and finding on consultation with my partner, the boat-steerer, that he was of the same mind, we began to keep an eye to windward for chances.

One night, when I thought circumstances favored our project, I let my hat drop from a gun-port, as if by accident. The marine on duty was walking the poop deck, but it being a foggy night, he did not see us as I hauled the boat from the swinging-boom alongside under the bow, and myself and partner got in and pulled for the shore.

The noise of the oars attracted the attention of the sentry, and he and the captain both fired at us, without effect, and the store-ship Lexington, which was lying close by, fired a gun loaded with grape, which struck the boat just as we landed, knocking it all to pieces, but doing us no injury. As soon as we landed, we made for the woods, being obliged to pass a fort filled with

American soldiers, who fired upon us without effect, so that we were enabled to reach the shelter of the wood unharmed.

We remained in this wood for a few days, and then travelling on, we reached the city at night, where we stole horses and made for the mines.

We had not ridden far before we met two travellers, who were returning from the diggings. As they approached us, we stopped; and when they were about passing us, we drew our pistols, and bade them stand and deliver. They made no resistance, but quickly transferred such dust, nuggets, and other valuables as they had about them to our keeping, when we bade them good day, and allowed them to proceed upon their journey.

Arriving at the Salina plains, we stopped at a house over night, where we committed a robbery, and continued our journey the next day to the gold mines.

On our arrival there, we went about from claim to claim, and from diggings to diggings, adding to our store of dust by robbery and murder; and though we were perfectly reckless of consequences, and carried on our operations in the boldest manner, we escaped detection, though we did not avoid suspicion, and were more than once in danger of expiating our crimes by sentence of Judge Lynch.

I have no doubt that during this period, many of the crimes attributed to the notorious Joaquin, and other robbers, were committed by us; but the devil, whose work we were so industriously doing, seemed to protect us, and for more than a year we pursued our career of blood and crime with impunity.

Having by this time accumulated sufficient dust to satisfy our desire, besides that which we had squandered in gambling in the various mining towns and districts, we made our way to San Francisco.

We had as much gold as I could lift from the ground with one arm, which, upon our arrival in San Francisco, we exchanged for coin, and then commenced a long period of debauchery and licentiousness.

Every bar-room was at that time a gambling-place. The laws were loosely administered, and the only code really recognized was that of might.

Among the lawless, there were none more lawless than I; among the profligate and depraved, none more so than I; among the reckless and desperate, none were more reckless or so desperate as I and my companion.

The bar-room, the brothel, and the monte table, were the only attractions for us, and for six months we led the life of demons, leaving no bad impulse, no fiendish purpose, no gross passion, nor any wicked design, ungratified or unaccomplished.

After our money was all gone, and we began to be marked and suspected, we shipped on board of the brig Josephine—a Spanish vessel, bound for Valparaiso, and having on board a large amount of treasure, consisting of gold dust and Mexican doubloons.

One night, while we were coasting down, myself and partner having completed our arrangements, armed ourselves, and going into the cabin, gagged and bound the captain and officers, and placed them in a boat, compelling the crew to follow, leaving us in possession of the ship.

We then collected all the treasure, which we placed in the boat we had reserved for ourselves, when we scuttled the vessel and set fire to her.

What became of the officers and crew I never heard, but the owners of the brig Josephine, should they ever read my narrative, will learn, for the first time, the news of her real fate.

After seeing the vessel burn to the water's edge, we pulled away, and favored by fine weather, we arrived within a short time at Mazatlan, having in our possession nearly or quite a hundred thousand dollars in dust and doubloons.

Here we purchased a hotel and bowling alley, and for a year and a half carried on business, occasionally indulging in my old propensities, and never missing a chance of appropriating to my own use such property or effects belonging to the travellers who stopped with us, as I could lay my hands on, occasionally taking to the road and waylaying those whom it would have been imprudent to have robbed while they were in the town.

But though our business flourished, and we might, had we exercised ordinary prudence, have grown rich and lived honestly, our propensities for gambling, carousing, and every sort of vile dissipation, ran away with our ill-gotten gains, and by the time eighteen months had elapsed, we were forced to abandon our hotel and take to our old business of robbing and murdering, until we were forced to fly to escape punishment, and once more took to the highway.

The scene of our operations was the road leading from the mines, where we stopped the mules, murdered the conductors, and took such silver as they had in charge.

We came by these means into possession of large amounts of silver in bars, which being altogether too heavy for transportation, we were obliged to bury, and went back to Valparaiso.

At Mazatlan there lived a Chinaman by the name of Bill Cassa. He kept a public house, and being a reckless, unprincipled sort of fellow, and fond of money, although he was already rich, we selected him to become the purchaser of our hidden wealth. So, putting up at his hotel, we commenced sounding him, and finding his curiosity and avarice excited by our hints of hidden treasure, we at last offered to guide him to the spot where it was buried, provided he would pay us a sufficient sum of money in gold for the secret.

He agreed to this proposition, but the cunning fellow refused to take any money with him upon the journey, so that we were obliged to depend upon his honor for keeping any bargain he might make with us after seeing the amount of silver we had for sale. Had he taken the money with him, we should have been obliged to look for another customer, for we should have murdered him and possessed ourselves of all he had. I suppose his confidence in us was not over large, and so he would not consent to give us anything until after we had shown him the spot where the silver was buried, and should have returned to Mazatlan. We started with him at night, and by morning reached the spot. After examining the silver, which must have been worth at least a hundred and fifty thousand dollars, he agreed to give us \$25,000 in gold for it. We consented to this, and going back to Mazatlan we received our money, and went to Valparaiso, where we opened a boarding-house, but at the end of a year we had gambled and spent nearly all our money, and so took again to our old career, working on the road between Valparaiso and the mines, where we robbed the mule trains as before, murdering the conductors, and thus coming into possession of a very large amount of silver in bars. After we had accumulated as much as we thought would serve our purpose, we went to a small village called Sueda, in the neighborhood of the mines, and there sold the buried metal to a Spanish merchant, named Don Juan Alte, for \$15,000, when we returned to

Valparaiso and took passage on board the bark Maria, of Baltimore, Captain Mattison, bound to Rio Janeiro.

Nothing of particular interest occurred on our voyage to Rio, but after staying there six or seven weeks, and spending nearly all our money in gambling and debauchery, we took the road between Rio and Montevideo, where we robbed all worth robbing, and murdered all who resisted us.

There is many a whitened skeleton bleaching by that roadside now, on the same spot where it fell by my murderous hand; and the traveller, as he rides along, sees many a place where the grass grows taller and greener than that which surrounds it; but he little dreams that its roots are enriched by the blood shed by me. If I should travel that road now I should have plenty of ghostly company, for, though dead men tell no tales, and are but dead to all the world beside, to me they are now living horrors, and will insist in keeping company with me.

I remember one day that, a few miles from Montevideo, we attacked a man and three women, all of them being on horseback. We robbed them, and should have killed them all, but the women were beautiful, and for once I allowed my heart to yield to the soft feeling of pity, and we did not murder them.

I shall never forget the look of these poor frightened creatures kneeling at my feet, praying me to be merciful, while my partner, Tom Stone—that was his name, I do not think I have mentioned it before—stood a few feet off, with his pistol at the head of the man who was gradually divesting himself of everything valuable he had about him.

One of the women wore half-a-dozen magnificent diamond rings, and the other carried two gold watches set with diamonds, besides other trinkets of great value. These I made them take off, and give to me; after which, I intended to have ravished and then killed them; I hallooed to Tom to get rid of the man, and come and toss for the choice of the women—but the younger one of the two, though I spoke in English, seemed to be aware, as if by instinct, of our designs; she started suddenly up, and with a bound sprang to the side of her husband, and clung to him in such a way that Tom could not kill him without killing her also. I seized the other woman, and was about to execute my hellish purpose upon her, when, with tears and prayers she besought my pity, and begged for mercy, but I was deaf to all her prayers, and was again about to seize her, when she sprang from me,

and like her companion, clung to the man. I followed her, and both the women, as if by one impulse, again fell on their knees, and besought us to spare them.

I do not know how it was, but my heart softened for once, and I stopped Tom's hand just as he was going to pull the trigger on the man, who now stood alone, with his arms folded, awaiting his fate. Tom looked astonished, but put up his pistol with an oath, and after some demurrer, agreed with me to let them all depart without further harm. I even assisted them to catch their horses, which they mounted, and rode back with all the speed they could toward Montevideo. Ten minutes after they had gone I felt sorry, and thought I had acted like a fool.

After this adventure, I felt in continual fear of detection, and as we had accumulated by our robberies a sum not less than a hundred and fifty thousand dollars in money, jewels and trinkets, we transported our plunder by degrees to Rio, where we remained a few weeks enjoying ourselves, and then took passage for Buenos Ayres, where we remained a year, gambling and robbing as usual.

We had not spent all our money, but still had a large sum left, which we concealed in our trunks and canvas bags, and shipped on board the bark *Anada*, of Boston, bound for New Orleans. We did not go as passengers, as we wished to conceal the fact of having so much money in our possession.

During the passage, and in sight of the West India Islands, a mutiny occurred.

One of the ship's boys having committed some offence, the captain ordered him to be whipped, and he was tied up aft. His yells and screams, as the cat descended on his back, made me mad, and going aft, I cut him down.

The captain interfered, when I knocked him down with a handspike, and my partner Tom backing me, we went into a general fight, which resulted in leaving Tom and I in possession of the ship. We tied all hand and foot, except the boy I had protected and one man, and then taking the boat, we lowered our chests into it, following them ourselves, and made for the shore.

We landed upon the Island of Barbadoes, and in the course of a few days went on board of an English brig, the *Conova*, bound for New Orleans. Everything went on well until we arrived within fifteen miles of the bar,

when the officers, discovering that Tom Stone and I were armed, found fault with us, which led to a disturbance, whereupon we left the ship in a boat, fearing that we should be arrested on our arrival if we remained on the ship. We landed at the Belize, and in a few days arrived at New Orleans, where we remained for a few months, gambling and carousing.

From here we shipped for Liverpool on the ship Columbus, Capt. McSerin. We lost a man overboard during the passage, and the ship went ashore off Waterford in a gale of wind.

The Columbus went to pieces shortly after she struck, and I believe that nearly all hands were lost; but I made my way to shore on a fragment of the wreck, and was delighted to find, on reaching a place of safety, that my partner, who had braved so many dangers, and escaped so many other perils with me, had also escaped a watery grave.

We went into Waterford penniless, but we committed a robbery, the proceeds of which enabled us to reach Liverpool, from whence we shipped in the ship Charles Mallary, of Mystick, for Rio Janeiro.

On the passage, believing that there was a considerable amount of money on board, I used all my endeavors to stir the crew up to mutiny, intending, if possible, to kill the officers and make myself master of the lion's share of the plunder, but I could not succeed in bringing matters to a crisis, although the whole voyage was a series of rows and fights, in which I was generally the principal.

When we arrived at Rio all hands left the ship but myself and Tom Stone, who were forced to remain, as we were both sick, and as soon as we began to recover they put us both in irons.

But one day, the mate going on shore, we broke our irons and left. Reaching the city, we remained quiet until the vessel sailed, and then shipped on board of the ship Admiral Granford, of Liverpool, for New Orleans.

All went on smoothly enough to all appearances, but during the whole voyage I was working quietly among the men, sowing the seeds of discontent and mutiny, which came to a head when we were within about twenty-five miles of the Belize.

Here a regularly organized revolt took place, headed by me and Stone, in which about one half of the crew were actually engaged. We succeeded in

overpowering the officers and such of the crew as sided with them, and after binding them we robbed the ship of all the money and portable valuables we could lay our hands on, and after scuttling the ship and setting fire to her we took to the boats and made for land.

On reaching the shore we divided the spoils of the robbery, and separated, myself and partner going to New Orleans together, where at the end of a few weeks we again shipped on board of the ship *Mobile*, of Bath, for Liverpool.

While we were taking in cargo at New Orleans, we robbed the ship of a quantity of Irish linen; but on trying to smuggle it ashore we were arrested, but escaped punishment by means of perjured witnesses. After our discharge we rejoined the ship and went to sea.

But off Blackwater Banks a terrible storm struck us. We had over eight hundred souls on board, and the scene was enough to appall the stoutest heart and make the bravest man shudder. The waves ran mountains high, and the wind blew great guns; sail after sail was carried away, and as we were fast driving in to the Banks, all hope of saving the ship was given up. The poor wretches gave themselves up for lost; some prayed—some cursed—some shrieked in an agony of fear, and some madly cast themselves into the water and died before their time.

But during this dreadful panic I felt no fear, for on this occasion, as all through my life, I felt as if I was protected by a superior power, and only thought how I could turn the loss of the ship to account.

When the ship struck, I watched my opportunity and lashed myself to a large spar, on which I floated for two days, when I was picked up by a pilot boat and taken into port, as the American Consul at that time will certify. Of the eight hundred passengers on board of that ship not one save me escaped that I ever heard of. The only one whose loss I regretted was my partner, Tom Stone, with whom I had been associated for so many years. He was a brave fellow, with a ready wit and strong arm, ever on hand for any enterprise, no matter how desperate; and wicked as he was, I believe he loved and would have died for me.

Well, he has gone to his account, whither I must shortly follow him, and tread the same dark path he trod before me.

On finding myself safe on shore once more, I shipped on the bark *Jeanette*, of London, for New York, from whence I went in the schooner

Eliza, for Boston.

On board of this schooner I met a man by the name of Lockwood, whom I found to be in every respect worthy of filling the place made vacant by the death of Tom Stone. He was a strong, wiry man, full of determination, cruel and desperate in his disposition, and totally without fear. I found he had led a life nearly similar to mine, and he thought no more of stealing a purse, or cutting a throat, than I; and, in addition to his other qualifications, was an expert navigator. So the second day out, we laid our plans to rob the schooner and scuttle her, which we did that night when off Block Island, making our escape in a boat, and leaving all hands to perish.

We landed on Block Island, and went on board of a sloop bound to Newport, where we shipped on board a schooner, Mescedions,^[1] of Providence, for the West Indies. Nothing particular occurred on the passage, and when we arrived at St. Domingo, we left the schooner and went in a brig to New Orleans, whence we shipped on the schooner Camphene, for the Straits of Magellan.

¹. The name is spelled as Hicks pronounced it, but it is evidently not the correct name.

When we were at anchor in the Straits one night, Lockwood and myself having previously arranged all our plans, robbed the schooner of all the money and valuables on board, and after scuttling her by boring holes in her bottom, we set fire to her, while all hands were asleep aft, and got away in a boat, leaving all on board to perish. We landed safely, and travelled across the coast to the nearest town, living on four days' provisions, which we took with us from the schooner. We reached the place in about ten days, very much exhausted by lack of food and water.

As we had plenty of money, we made up for our late deprivations by plunging into all sorts of dissipation and pleasures; never, however, losing a chance to rob anybody whose appearance promised to pay us for the trouble. In this way we spent some months, and then went to Joaquin on horseback, armed for the road, where we stopped for a few weeks, leading our old life, and then went to Santiago, robbing and murdering as before. We did not confine our operations to highway robberies alone, but committed every variety of depredations, breaking into houses, and murdering and robbing the inmates while they slept.

We remained in the neighborhood of Santiago about one year, and, should I undertake to relate circumstantially all the murders we committed during this time on the road between there and Valparaiso, it would occupy nearly all the time I have to live. It would take some time to give even a list of those I can remember, and they were of so frequent occurrence, I have no doubt many of them have escaped my memory altogether. I do not think I could name them all in one day.^[2]

². This was in answer to a direct question.—ED.

After this, our longer stay in this neighborhood would be running too great a risk, as our numerous outrages had attracted the attention of the government, and the whole country was aroused against us; so we shipped on board the brig Anne Mills, bound to the coast of Africa.

This brig was lying at Valparaiso, and was chartered by a man under the pretence of making a trading voyage, but his real object was piracy, and we shipped with a crew of men desperate as ourselves, who, if they did not know the object of the voyage, the captain rightly thought, would have no scrupulous objections to it.

As soon as we were upon blue water, the captain opened our plan of operations to the crew, and although one or two murmured at first, all at length came into our scheme. In fact, they were obliged to do so, for had any of them held out, we should have disposed of them in a very summary way.

I was now in my proper element, where I could gratify the highest object of my wicked ambition. I was a free rover, with no one to fear, and no one to obey, with the whole world for my prey.

During the year that I sailed in this vessel, we overhauled, plundered, and burned several Portuguese and Spanish ships, in most cases murdering their crews. After cruising about the West India Islands, we made our course for the Gulf of Gibraltar, went to Marseilles, boarded a Greek vessel, and obtained provisions and stores. Finding that she had no money on board, we let her go, and the next morning sailed for the Dardanelles, where we cast anchor and went ashore at a small town, and although none of us could speak the language, we remained there about six weeks, and then went to Constantinople, and on the voyage lay one night alongside of an English brig.

We boarded her about 12 o'clock, and after searching her and finding nothing, we went on our voyage.

After remaining a short time at Constantinople, we headed for the Gut of Gibraltar, and one night were hailed by a British man-of-war, whose name we did not learn. We answered in Portuguese, when she ordered us to lay to.

Instead of doing this we crowded all sail, and during the conversation we had got our guns ready; we gave her a raking fire from our stern, which carried away the foremast. As we saw it falling over the side, we bade them "good bye" in English, and gave them three cheers, for which they returned a broadside, and we received two shots in our stern.

I dare say the British Admiralty never knew to this day to what vessel their man-of-war was indebted for the loss of her foremast, but if they ever read this the mystery will be cleared up. It is more than likely they have suspected their old enemy, the French, of playing this trick, but they have been wrong; the shot came from the brig Anne Mills.

We never shortened sail until we reached a Spanish port, about 150 miles from the Gut, where we laid for a short time to repair damages, and made sail for the coast of Mexico, and stopped at a port near Vera Cruz, where we laid in wood and water, and sailed for Vera Cruz. From here we went to the coast of Florida, and anchored in the mouth of the river opposite Jacksonville. Here we lay two or three weeks recruiting; at the end of this time, having completed the necessary preparations, we sailed direct for the coast of Africa, where we took on board a load of negroes and steered our course for Rio.

A few miles to windward of Cape Frio an English cruiser hove in sight. We made off for the land at once, but finding the cruiser was gaining upon us, the captain made the negroes fast to the chain cable and let the anchor go, with the cable over the rail, dragging the negroes overboard.

We were pursued to the shore, and most of those on board were captured. Lockwood and myself, with our usual good luck, managing to escape.

We walked to Rio destitute of everything but arms, rifles and pistols, and on reaching that place shipped on board the bark Josephine of Boston, bound to Liverpool. We had a quick passage, not marked by anything of peculiar interest, and on our arrival there we shipped on the bark Alga for New Orleans.

During the voyage a disturbance broke out, and some one, who I do not know, set fire to the vessel. We took to the boats, and in the course of a few days we were picked up by the brig *Exact*, of Liverpool, and taken to St. Domingo, where we shipped on board brig *Fanny Fosdick*, for St. Mark's, Florida.

We ran on the Florida reefs in a fog, and all hands were lost, except myself, Lockwood, the captain and mate. We were taken off by a small schooner and carried into St. Marks, where Lockwood and myself remained for four months, committing all sorts of depredations, among which robberies and murders were of frequent occurrence.

Wishing for a new field of action, however, we engaged as hands on board the pilot boat *Lucina*, not with a view of working long, but for the purpose of getting possession of her the first opportunity which should occur.

She was a beautiful little craft, sat on the water like a sea bird, and, for speed, was unsurpassed. In fact, she was just the thing we wanted. We had fixed our eyes on her long before, but had to wait for circumstances favorable to our plan to turn up before we dared to apply for situations on board of her.

We had not sailed in her long, however, before the long-wished-for opportunity arrived; and one day, when the pilots were all ashore, we got her under weigh for the Double H. Shot Keys, where we boarded a brig, and procured some provisions and stores. We were not heavily enough armed, nor in the proper shape to rob her, or we would have done so.

After this, we started on a cruise, seeking victims in all the small craft which came in our way, but not meeting with any great success, we made our course for New Orleans, for the purpose of procuring arms and provisions, and if we could meet any men of the right stamp for an enterprise like ours, to press them into our service.

Arriving at the Balize, we lay to till midnight, and then taking the yawl went on board a bark and robbed her of a considerable sum of money, two chronometers, and other valuables.

After this, we put back to sea again, and committed many depredations upon fishing smacks and other small craft. We continued this life for some time, but beginning to long for the pleasures of shore, we ran our little craft into Matagorda Bay, where we placed all our money and valuables in a

yawl and went on shore below Matagorda. We burned the yawl upon the beach, and secreting a portion of our effects in the sand, went inland, where we lived on in our usual abandoned and reckless life. After some time we again made our way to the coast, and digging up and carrying away our treasure, we went to Matagorda, where we stayed a few weeks, committing several robberies; and then, after purchasing an outfit, shipped on board of a schooner, whose name I cannot call to mind, bound for Boston. On our arrival we left her, and going ashore we remained there a short time, watching an opportunity of shipping on board of some small craft not heavily manned, which we could rob and take possession of when out at sea.

Nothing presented itself, however, which we considered worth our while, but we were not by any means idle, for we committed several robberies on shore, one of which, a burglary in Washington street, we came very near being detected in, and the circumstances connected with which caused considerable stir. In fact, we found it necessary to leave, which we did.

The Boston officers started in pursuit of us, but we managed to throw them off the scent, and as soon as we were convinced that they were on the wrong track, we made for New York, which we reached in safety. Those circumstances took place about four years ago.

I remained in New York a short time, enjoying myself, and then shipped on board of a schooner, whose name I have forgotten. She was bound to the West Indies for fruit, and I supposed that she had considerable money on board. My only object in going on her was to rob her if I could. My old partner was with me, and we tried by every means to find out how much money was on board, where it was kept, etc., but did not succeed, and no opportunity occurred for us to carry out our plans during the voyage. So we came back on her to New York, and both shipped on board the schooner Sea Witch, a Norfolk oyster boat. As before, our object was murder and robbery. I suspected that she carried out a large sum of money each trip, but did not know how much, until I kept count of the number of oysters bought, and the price paid for them, which made me determine to kill all hands on the next trip, and secure the money as soon as we got out to sea.

But from some cause or other we were mistrusted, and we were discharged on our arrival at Nova Scotia.

I waited some time for a similar chance, but failing in getting shipped on board of anything which promised to pay me, I joined the bark Sea Horse, bound for the coast of Africa, for a cargo of slaves.

During the passage I succeeded in stirring the crew up to mutiny, and after a severe fight we succeeded in overcoming and killing the officers, and took possession of the ship.

We ran the vessel ashore at Congo River, took the money, and joined an English vessel, after dividing our spoils to suit myself and partner, we keeping, of course, the largest share of it.

I almost forget the name of the English ship in which we sailed for London, but think it was the Zacharias. However, we played the same game on board her, that is, we excited a mutiny. The captain, mate, and steward being in the cabin asleep, we entered quietly, and took everything valuable we could lay our hands on, and then, going on deck, fastened down the hatches in such a way that the officers could not make their escape, after which we tied the other two of the crew, and landed in the boat at Havre during the night, from where we took the packet to London.

Here my partner and I separated, and I have not heard what became of him. I hope, if he sees this confession and learns my fate, it will serve as a warning to him, and that he will give up shedding blood and robbery, and lead an honest life.

About this time—that is, some three years ago—I married, and shortly after, came with my wife to New York, on board the ship Isaac Wright, Captain Marshall, who knows me well. On reaching New York, I took some rooms, and lived with my wife in Batavia street. I do not remember the number, but it was a corner house, and stood opposite to No. 17.

During this time I worked along shore, all the while looking out for chances, and trying to get a berth on some vessel which I might rob with profit; but not meeting with the opportunity I wanted, I left the city with my wife, and going into the country, in the neighborhood of Norwich, Conn., went to work for a Doctor Baldwin. I remained with him some time, and then went to Norwich, where I worked for a Daniel Mapler, till a longing for my old life of excitement and adventure came over me, and I returned to New York and took lodgings at 129 Cedar street.

In a short time I shipped on board of the steamer Alabama, for Savannah, returned and shipped on board schooner Kate Field, for Indianola and

Galveston. I committed a robbery on board of this vessel, and though I was detected by the captain, nothing was said about it.

The goods I appropriated were part of the cargo, but they were not missed by the owners, and so I escaped. From Galveston we sailed to Matagorda Bay, took in a cargo of sugar, and returned to New York, and for some time after this I remained on shore, working occasionally, and all the while watching my opportunity to get a berth on board of a vessel for the old purpose.

With the object of committing a robbery if a favorable opportunity presented itself, I went a voyage in a schooner to Georgetown, S. C., but returned without finding it worth while to carry out my intentions. For a time I worked along shore again, and then went to Boston on a coaster, intending to rob her if I found she had money on board, but as she had not, I came back in her to New York, and shipped on schooner John, for Wilmington, N. C.

As we came out of Wilmington harbor, on our return, we found the yacht Kate, which had been run into.

I saw the wreck first, and as soon as we got alongside, I jumped into her, in water up to my armpits, and making her fast to the schooner, commenced bailing her out.

We finally got her afloat, and took her into Wilmington, from whence she was returned to her owners. We claimed salvage on her, which was allowed, but there is something due me now on my share, which I hope will be paid to my wife after I am gone.

Returning to New York, I lived by working along shore, but never missed a chance of robbery when it promised to pay me for my trouble, and the risk was not too great; but I was careful of doing much in New York city, and was all the while on the lookout for some enterprise in my favorite field of action—the sea.

I kept a sharp lookout for all small craft outward bound for cargoes of fruit, oysters, etc., and in a quiet way gathered all the information I could in regard to the number of hands they shipped, and the amount of money they generally carried.

During my searches I came across the sloop E. A. Johnson, Captain Burr, and in making application was engaged on board of her.

I come now to the closing acts of my life, to the last scenes in my wicked and bloody career.

From my youth up I lived by crime. I have steeled my heart against every good impulse. I have considered mankind my natural prey and have never hesitated to gratify my appetites, passions, and desires, no matter how dear the sacrifice paid by others for their gratification, and now society which I have so long outraged claims the only recompense I can make for all the wrongs I have committed; the law, which to me has ever been a subject of scorn and derision, now exerts its majesty, and calls on me to pay the penalty due for breaking it; mankind, against whom I have so long waged a bloody and resistless war, now clamors for my blood, in compensation for the innocent blood I have so often shed. Justice at last asserts her sway, and a dreadful punishment awaits me.

But let me go on to the end.

The sloop E. A. Johnson offered an easy prey. She had on board, I supposed, from all the information I could gather, something over a thousand dollars, and the entire crew consisted of but two boys and myself.

I had never known of or seen Captain Burr before I shipped with him. He had never done me injury or wrong, so that I had no revenge to gratify, no grudge to pay.

He seemed a kind and amiable man, and would, I have no doubt, awakened kindly feelings in any heart but mine, and even I liked him. Yet I engaged myself to him solely, and only for the cruel purpose of taking his life, the lives of the two young men, and making myself master of the money I supposed he had on board.

I calculated to do this as calmly as you would contemplate doing any of the usual duties in the ordinary transactions of life.

I had killed men, yes, and boys, too, many a time before, for far less inducement than the sum I supposed I should gain by killing them; and I had too often dyed my murderous hands in blood in days gone by, to feel the slightest compunctions or qualms of conscience then.

I never thought of the consequences of such a crime. The fear of detection never once crossed my mind. I had too often done the same thing with impunity to believe that a day of reckoning would ever come, in this world at least, and I never gave a thought to the world to come.

After engaging with Captain Burr, I went home to my wife at 129 Cedar street, and lying down on the bed, told her not to disturb me, as I wanted to take a long sleep, and if any one came for me, to say that I was not in. She left me alone, and I then deliberately matured all my plans. I marked out the course I intended to pursue exactly, and after I had decided upon everything, I went to sleep and slept as soundly as ever I slept in my life, my mind was so much at ease, and I felt so contented at the idea of having at last an opportunity of making some money in an easy way.

The next day I went on board and commenced my duties, and in order to ingratiate myself into the good graces of the captain, I did even more than could have been expected of me.

We sailed on the sixteenth of March from the foot of Spring street, and proceeded to Keyport, where we remained till Sunday. While here, I scraped the mast of the sloop, did a lot of carpenter work, and evidently pleased Captain Burr very much by my earnestness in trying to make everything look ship-shape.

We arrived at Gravesend on Saturday afternoon, and waited there for a fair wind.

At last we put to sea, and when we were off the Ocean House, I went to the forecastle, and got an axe, which I put in the boat hanging to the davit aft.

The younger Watts was at the helm, and I asked him to allow me to steer a little while. He consented, and went forward.

In a few minutes I left the helm, and taking the axe, went to him, and asked him if he saw Barnegat Light. He said he did not. I told him to look again, and pointed with my hand.

He turned round and looked in my face a moment, but even if he had suspected my cruel purpose, he would have read no indication of it there, for I was as calm as though I were going to do the simplest and most innocent thing in life.

Had I been under human influences, the confident and trusty way in which he turned his eyes to mine, would have made me hesitate, but no such thought entered my heart, and I pointed again and told him to "Look there; ain't that it!"

He turned his head, and peered through the darkness in the direction I pointed, and as he did so, I struck him on the back of the head with the axe, and knocked him down.

He fell!

Thinking I had not killed him, I struck him again with the axe as he lay upon the deck.

His fall and the sound of the axe made some noise, which, added to that caused by my running across the deck, attracted the attention of the captain, who came up the companionway, and putting out his head, asked what was the matter?

I replied, “nothing,” and then asked him, as I had the younger Watts, “Is that Barnegat light?”

Captain Burr replied, “No, you will not see it for two hours;” and as he spoke he turned his head from me.

The axe swung in the air, and, guided by my sinewy and murderous arm, came down.

The edge crunched through his neck, nearly severing his head from his body, and killing him instantly.

The body fell down the companionway.

As I turned to leap after it, and dispatch my remaining victim, I looked forward, and—Oh, God, how I shudder to think of it now!—he whom I thought I had already killed had risen and was coming aft, his hand outstretched toward me, and the blood running in two dark streams over his pale face, from two ghastly wounds on his head.

For a moment I stood undecided, but as he still came on, I ran toward him, but ere I reached him he fell about midships, and rushing on him, I struck once! twice! thrice! with the axe, and finished him.

Running aft, I jumped down the companionway with the bloody axe in my hand.

There lay the elder Watts in his berth, and close beside him the ghastly, bloody corpse of the captain.

I stood a moment looking at him, and dashed at him and struck out with the axe.

He leaped out of his berth, and sprang at me, all red with the blood of the captain, whose body had fallen past him, covering him with gore in its fall.

He tried to grapple with me, but stepping back, I gave the fatal axe a full swing, and struck him again, again, and again, once upon the head, once on the back, and once more upon the head, which felled him to the floor, and he lay dead at my feet, side by side with the captain.

My bloody work was done!

Dead men tell no tales.

I was alone. No eye had seen me, and now I was free to reap the reward of my work.

I did not feel the slightest regret for what I had done, and went about removing the bodies, as coolly as though they had been so much old lumber.

I took a rope and bent it on to the feet of the elder Watts, hauled him on deck, and threw him over the quarter. I then hauled the captain out in the same manner, and threw him over; and then going to midships, I lifted the body of the younger Watts from the deck, and plunged him into the sea by the starboard side.

I then threw the axe overboard, and soon as I had done this, I changed the course of the sloop, and ran in close to the Hook.

My intention was to run the sloop up the North River, and then fire her, but I came near running her on the Dog Beacon, abreast of Coney Island and Staten Island lighthouse, after which I fouled with a schooner, and carried away the bowsprit, so I put the money and such other articles of value as I could pick up, into the yawl, and then sculled ashore three miles, landing just below the fort on Staten Island.

My movements after landing are well known; and when I look back upon the fatality which seemed to dog my steps, it seems as though the fiend, who so long had stood by me in every emergency, had deserted me at last, and had left me to my own weakness.

But I never thought of this until after my arrest. I had no shadow of a presentiment that I should be checked so suddenly and brought to justice, and on my return to New York, made arrangements to go away with my family as coolly as if nothing had occurred which should counsel me to use caution.

But on that fatal night when I awoke from a deep sleep to find the officers of the law standing by my bed, for the first time fear overcame me, and I grew faint and weak as a baby. Great drops of sweat started out on my forehead and all over my body, and then I realized that at last the master whom I had served so long had really deserted me and abandoned me to my fate.

But to all outward appearance I choked these feelings down, and none who saw me dreamed of what was passing within.

My task is done. I have related all the awful details of my life with as much minuteness as I can, and now nothing is left me but to prepare to die.

I ask no sympathy, and expect none. I shall go to the gallows cursed by all who know the causes which will bring me there, and my only hope is that God will, in his infinite mercy, grant me that spirit of true repentance which may lead to pardon and forgiveness in the world to come.

PHRENOLOGICAL CHARACTER
OF
ALBERT W. HICKS,
GIVEN AT
FOWLER AND WELLS' PHRENOLOGICAL CABINET,
308 BROADWAY, NEW YORK.

BY L. N. FOWLER, PROFESSOR OF PHRENOLOGY.

June 29th, 1860

He has a remarkably strong muscular organization, and bony system, which has a powerful influence on the tone, quality and direction of his mind. His mental temperament is fairly developed, but not to such an extent as to give the finer qualities to the mind and character. He is excitable, and susceptible of intense feeling, yet it is rather a heated impulse of passion, than a delicate and refined sensibility.

He has a large brain, which gives a great amount of general mental power, and with a good education and proper direction, he would be able to exert a leading and extensive influence over others.

His Phrenological developments are very marked. His head is high in the crown, and long, but rather narrow. Destructiveness is not a leading organ, and it acts chiefly as the servant of his excessive will and other strong propensities, which circumstances and bad training may have made sources of temptation to him. He is however, strongly developed in Combativeness, which gives the spirit of resistance, self-defence, and power to overcome obstacles, and if provoked, and had some selfish purpose to subserve, his

Combateness and Firmness would render him capable of almost any act of desperation.

His social organs are large, and he is susceptible of strong love to woman, but with such a temperament that love would take an animal direction. He is interested in children and home, and in friends when they do not oppose his course. He is also very continuous and protracted in mind, and never gives up any project that he has once resolved to accomplish.

His Alimentiveness is large; he loves to gratify the appetite highly, and is liable to indulge it too freely. His love of property acts strongly in proportion to his want of it, and he seeks it to spend, rather than to lay up, and if he had an abundance, it would go freely in the gratification of his various desires.

The tendency to be cunning and artful, is not very strong. He is more likely to do things openly and undisguised, than he is to work shrewdly behind the curtain, and do things in such a mysterious way as to defy detection; yet he has much Cautiousness, and is watchful where there are dangers and difficulties to be encountered.

He has a great amount of ambition to excel in what he does. He has also excessive Self-Esteem, independence, self-reliance, and desire to be the master spirit, and maintain his own individuality. His will is the strongest element of his mind, and his character is more affected by it than by any other one faculty; for whatever he may purpose to do through the influence of circumstances, he will carry out at all hazards.

His moral brain indicates large Hope and anticipation, but only medium Conscientiousness and Benevolence, which hardly ever act in a controlling manner.

His Spirituality is very deficient; he has very little idea of the unseen, and of subjects pertaining to the higher life, and has scarcely any Veneration at all, which leads him to act without due regard to the Higher Power, and without feeling his dependence on, or much responsibility to, his Creator.

His mechanical talent, sense of beauty, and love of the sublime, are only average in power. His ability to imitate and copy, is good, and his love of fun rather strong, without being particularly given to joking and fun-making. He has a correct eye for proportion, can judge well of forms and outlines; has a good degree of order and arrangement, has good native

talents for making estimates and calculations; has a superior memory of places and localities, and decidedly good abilities for any kind of mental operation where order, method, system, knowledge of principles and places is required.

His conversational talents are poor, and his memory of events not very good. His powers of comparison are excellent; intuition, and ability to judge of character and motives, good; agreeableness and suavity of manner rather wanting; in fact, the leading features of his character grow out of his will, determination, and continuity of mind; a domineering, proud, unsubmissive spirit, joined to strong watchfulness and forethought, and the desire to accomplish what he attempts, in the most signal and positive manner. He should be known for love of his female friends, fondness for children, attachment to home, and a fair degree of sympathy with his friends. He has a deficiency of tact and power to conceal his feelings, and those qualities that give spirituality, religious feeling, and sense of dependence. The crimes that he has been led to commit, are full as much the result of a want of the right kind of education, as from his natural organization. He has strong passions, and an unbending and headstrong will; but with proper culture, and good circumstances, he would, most likely, have used his energy and talents in a way to secure success and respectability, instead of warring upon the rights and interests of his fellow men.

TRANSCRIBER'S NOTES

1. P. [36](#), corrected “power to define and perish felony” to “power to define and punish felony.”
2. Silently corrected obvious typographical errors and variations in spelling.
3. Retained archaic, non-standard, and uncertain spellings as printed.

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